



File No.: EXP202104450

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the claimant) on 29/08/2021, filed a complaint with the Spanish Agency for Data Protection, directed against the MINISTRY OF DEFENSE (AIR AND SPACE FORCE -

***POSITION.1 - COLEGIO MENOR NUESTRA SEÑORA DE LORETO) with NIF S2801407D

(hereinafter, the respondent). The reasons on which the complaint is based are as follows:

He received via an email dated 5/7/2021 (attached as ANNEX I) information from the Colegio Menor Nuestra Señora de Loreto (CMNSL) where his (...) children (...) study, which states: "Last year we requested that you create an email account for your children to be able to use the educational platform" and continues: "the School requested and was granted GOOGLE WORKSPACE for Education" (GW), "a set of cloud-based tools," informing that "through GW, the School will create an email account for your children with all the advantages and features of a Gmail account, but with the domain colegiomenorloreto.es" and with "validity throughout the students' school life, so that each year the students are at the center, they will not have to change their email address." "You will soon receive an email with the account details for your children at the email addresses listed in Alexia."

"The structure of the email will attempt to be name.surname@colegiomenorloreto.es, except in cases of name and surname concurrency, where the second surname may be used." It concludes with:

"when you receive the email, access your children's account and change the password..."

A- The claimant exercised his right of access on 12/07/2021 "to the information regarding the processing of personal data that the Colegio Loreto is carrying out on my (...) children." He provides ANNEX II, as a "prior complaint protected under Article 37 of the LOPDGDD" in which he highlights: 1) He indicates that he has received the communication of 5/07/2021 and adds, "during the previous limitation on in-person classes during the pandemic, when some teachers began to use the Google Classroom tool (among others), this party did not give consent for the use of Google educational tools." He has expressed various discrepancies, suggestions, and writings to the School in the year 2020, related to data protection, including a document regarding the collection in the form for the enrollment process "of this year."

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2) In the record of processing activities (RAT) of the Ministry of Defense (MINISDEF), Air and Space Force, those carried out at the CMNSL are not mentioned.

3) The information available on the website ejercitodelaire.defensa.gob.es/EA/Loreto/ (provides a copy-paste version dated 11/07/2021) leads to the section: "privacy" and gives generic information about the processing and purpose of the collection of user data from the portal and the requested services, specifying that the data file generated with the personal data provided by the users of the portal www.ejercitodelaire.mde.es is the responsibility of the Ministry of Defense - Air and Space Force; there is no reference to the School at any point, and there is a "site map" with links to different bodies of the Ministry. The complainant points out that it contains references in the processing commitments to the previous data protection regulation, LOPD 15/1999, and this is noted. He adds that it "violates the duty of information imposed by the GDPR" and that "parents also do not have any other public source of information regarding the processing of personal data of ourselves or our children."

4) Possible violation of the duty of information by the data controller:

a) In the "form for obtaining medical data of minors," annex IV, titled "CMNSL Medical Record" "during enrollment," of which a copy/paste of part of the document is provided, "notice" refers to informing in

accordance with the LOPD 15/1999, which has been repealed, and that the data is incorporated "into the student file of the School for an "effective management," "will be used exclusively for the proper health control of the student, and may be transferred to the competent health authorities in case of necessity." It also indicates that the exercise of rights of access, opposition, and cancellation should be carried out before the Educational Center, not "before the controller."

b) In the form: "Authorization for the processing of data and information on the exercise of legal rights," information is provided about the data supplied for enrollment in the school, annex V, of which a partial copy/paste of the document is provided. It again refers that: "in accordance with the LOPD 15/1999, in its updated version of 30/07/2018," informing that the personal data "provided for enrollment in the School" is incorporated into a "private file" "whose controller and sole recipient is the School."

In the following paragraph, it also refers to: "All data provided" continues: "Under no circumstances will they be transferred to third parties nor will any person, natural or legal, have access to them, unless it is strictly necessary for the fulfillment of the educational purposes of the School."

The information is reproduced according to the writing:

- "The data and academic information of the students" regarding which "as the holder of parental authority you can exercise your rights of access, modification, and rectification of the data provided."
- "The rights of cancellation can only be effectively exercised for your personal data - contact details, bank account numbers, domiciliation data, medical data of your children -"

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- "However, the data contained in the 'academic file' cannot be canceled...", explaining the reasons.
- "To exercise these rights, you can request it from...", indicating the headquarters of the College and two modalities.
- "Having been duly informed about the processing of data and the data of my children, about my rights of access, modification, and cancellation of the same, in accordance with Organic Law 3/2018, I authorize its processing for exclusively educational purposes at the Colegio Menor Nuestra Señora de Loreto."

It specifies that there is no information on data transfers to third parties for "educational purposes," specifying to GW, it would be necessary to mention the possibility that those over 14 years old grant the authorization, and it forgets several of the rights, the retention period, and does not specify the security measures.

5) Lack of transparency in the transfer of data to GW regarding guarantees, signed contract, rights to be exercised, and security measures, adding that the account has been created without their consent.

6) It adds that it requests another type of information that it considers associated with the right of access: that the mention of data transfers, identity of the transferees, existence of a contractual relationship between the data controller and different processors, technical and organizational measures to ensure confidentiality, existence of impact assessments and audits that guarantee confidentiality, integrity, and availability, and existence of international transfers and guarantees of Article 46 of the GDPR be included.

B- The claimant received a response from the DPD of the Ministry of Defense in an email dated 2/8/2021 (a copy is provided in Annex IV), with an official letter dated 30/07/2021 (a copy is provided in Annex III): from ***POSITION.1, (...), recipient: DPDMINISDEF, with a copy to: ***POSITION.2, in which: "it sends a response from the EA regarding the request for the exercise of access and opposition rights."

In the text of the official letter, it states: ANNEXES, and, among others: "authorization for the processing of personal data," "response to the DPD complaint CMNSL."

Annex IV contains the response to the request for the exercise of rights, highlighting:

1) The existence of personal data processing of the interested parties carried out by the Colegio Menor Nuestra Señora de Loreto is confirmed, which "falls under the Command of Personnel of the Air Force and, therefore, the data controller of the data carried out by said entity is ***POSITION.1," and it is

listed in the Register of Treatment Activities - RAT - of the Ministry of Defense called: "EA. Management of Educational Centers," relating the website from which it is accessible.

By clicking on it, the version from June 22 appears, stating "a) purposes of the processing," which is broken down into sections:

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- Fines: "Management of centers": among others, it includes: "management of the provision of classes and conferences."

- "Management of data of minors," among others includes: "management of early childhood education centers, schools."

- "Management of academic data of educational centers"; among others includes: "management of applications for places, enrollments and collections, data necessary for the formalization of enrollment in the center, administrative management of students and monitoring of their academic history, conducting tutoring, professional guidance and academic support, management of student data to ensure their health, management of student data for the provision of the cafeteria service at the center, carrying out complementary study tasks such as visits to museums, activities, etc., Processing of images of students for dissemination or publication."

a) Collective: among others include: parents, legal guardians, teachers, students of educational centers.

b) Category of data: "identifying contact data including name and surname, ID number, phone, email" and "special categories of sensitive data related to health."

c) Category of recipients: "International transfers of data are not planned." It indicates that "the Spanish Agency for Data Protection understands, for the purposes of applying the GDPR, that international data transfers are those that involve a flow of personal data from Spanish territory to recipients established in countries outside the European Economic Area (the countries of the European Union plus Liechtenstein, Iceland, and Norway)." It points to a link from the AEPD regarding rights and duties, which is updated periodically, informing that "data controllers and processors may carry out international data transfers without the need for authorization from the Spanish Agency for Data Protection as long as the data processing complies with the provisions of the GDPR and in the following cases:..."

d) "Retention period: the documentation that constitutes this processing is part of the documentary heritage, which determines its preservation over time. They will be kept for the time necessary to fulfill the purpose for which they were collected and to determine any possible liabilities that may arise from that purpose and from the processing of the data. It mentions Organic Law 2/2006 on Education, of 3/05 and its amendments, and Organic Law 3/83 of 25/02 on the competence for legislative development and execution of education.

e) Legal basis: "Article 6.1b) of the GDPR and processing necessary for the execution of a contract in which the interested party is a party or for the application at their request of pre-contractual measures" and based on the essential public service of education, in Article 6.1e) of the GDPR: "processing necessary for the fulfillment of a mission carried out in the public interest or in the exercise of public powers conferred on the data controller," citing various legal norms.

"Explicit consent regarding matters related to minors," also without detailing which treatments it would relate to.

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f) Security measures "correspond to those provided in Annex II (Security Measures) of Royal Decree

3/2010, of January 8, which regulates the National Security Scheme in the field of Electronic Administration."

g) Data Controller: "***POSITION.1."

h) Data Protection Officer, address at the physical headquarters of the Ministry of Defense and email address.

1) "The Workspace for Education solution is an educational tool made available to teachers and students by the Community of Madrid. Its aim is to improve the management of teaching, address potential contingencies that may arise from COVID-19, and take advantage of the free nature of its basic version, in order not to increase family expenses. The agreement regulating it is published in the B.O.C.M. No. 149, of Thursday, June 24, 2021, as the 'COLLABORATION AGREEMENT of June 10, 2021, between the Community of Madrid (Department of Education and Youth) and Google Ireland Limited' (hereinafter AGREEMENT) 'to contribute to the improvement of digital competence in the educational field through the use of Workspace for Education.' 'From the Agreement, it is inferred that GOOGLE is the data processor, with the Department being responsible.'

'Starting from the next academic year, and once the necessary processes to begin using the Google Workspace tool have been completed, the transfer of data to the Department of Education of the Community of Madrid is planned for the purpose of managing it through said tool. In the meantime, families have been offered an email address for this purpose, requesting their acceptance and protection through a personal key. Such acceptance would be what activates the account. However, prior to the inclusion of data on said platform, express authorization for this will be requested from the parents or guardians of the students (...).'

2) "The transfers made under the data processing assignment to the company Google Ireland Limited, with registered office at Gordon House, Barrow Street, Dublin 4, Ireland, will not be considered international transfers for the purposes of the application of the GDPR. Google Ireland Limited acts as a data processor, never as a recipient of data transfers."

"Regarding the exercise of the RIGHT TO OBJECT to the international transfer of data, as well as to the processing of data through the Google Workspace tool requested by the interested party, it should be noted that, given that Ireland is a country covered by the application of the GDPR, the processing will not be understood, for the purposes of applying this Regulation, as an international transfer of personal data."

"Furthermore, regarding the objection to the processing of data through the Google Workspace tool or, subsidiarily, the limitation on these data until their lawful processing by that means, demonstrated and informed, it should be indicated that the Air Force considers that the processing of personal data is lawful by this means since the processing is carried out under the GDPR and through a data processing assignment with Google Ireland Limited supported by the recent Collaboration Agreement between the Community of Madrid." It considers the Agreement as the source in which the necessary transfers are implemented and that comply with the appropriate guarantees.

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"Considering that the processing of personal data is carried out under the application of Article 6.1.e) of the GDPR for reasons of public interest, consolidated through the right to education in Article 27 of the Spanish Constitution and Organic Law 3/2020, of 29/12, which amends Organic Law 2/2006, of 3/05, on Education, to facilitate the digitalization of education and access to it for all citizens during the COVID-19 health crisis, and that the representative of the data subjects has not expressed a reason related to their particular situation that sufficiently justifies the opposition to the processing, it is proposed to DENY their exercise of the right to object."

3) "Regarding the references to deficiencies in the informative clauses of the forms for data collection or for the consent of parents/guardians, it is reported that all of them are being reviewed and updated, so that they will be available before the start of the next school year, mainly, the one referred to as 'Authorization for the processing of data and information on the exercise of legal rights.'

· “The privacy policy referred to by the complainant is being updated; however, for the purposes of the duty of information, it is necessary to consider that this webpage is, as can be appreciated, a subdomain of the domain <https://ejercitodelaire.defensa.gob.es>, which precisely complies with what is stipulated in the GDPR.”

4) “The Google Workspace tool has certification from the National Cryptologic Center that recognizes it as a certified company under the National Security Scheme, as can be extracted both from the website of the National Cryptologic Center and from the information provided by Google on its corporate page.”

5) It is reported that, by the Data Protection Office of the EA, an inspection of the School is scheduled to take place during the third week of September, in order to confirm the completion of all actions initiated to remedy the deficiencies found after the complaint, mainly regarding legal information.

6) It responds that it has internal tools for risk analysis.

C- The complainant, indicating that he has been informed by SEGEMA that the AGREEMENT applies to his School, directed a letter on 25/08/2021, to the DPD of the Education Department of the Community of Madrid, (a copy is provided in Annex V) requesting various information about the AGREEMENT signed with GOOGLE to implement GW published in BOCM of 24/06/2021, asking:

a) If an DPIA has been prepared, as well as the result. If a prior consultation has been made to the AEPD (Article 36 GDPR).

b) Consequences of not providing consent.

c) Aspects regarding international transfers.

Annex VI is provided, in response, dated 27/08/2021, indicating that as determined in Annex II, section 3.1, the Agreement applies to public educational centers without profit.

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of profit of the Community of Madrid...” Therefore, it does not apply in educational centers of a private nature such as the Colegio Menor Ntra. Sra. de Loreto, whose ownership resides in a Board of Orphans of the Air Force.”

The claimant continues by indicating that the Board of Orphans of the Air Force is a “particular charitable association, attached to the Ministry of Defense” as provided in Article 1 of Order DEF/1876/2009, of 8/07 (BOD No. 138), which approves the Regulations of the Board of Orphans of the Air Force “Nuestra Señora de Loreto.” One might question whether it is integrated into the public sector or the institutional public sector (Article 2 of Law 40/2015, of 1/10, on the Legal Regime of the Public Sector), especially for the purposes of the special sanctioning regime of Article 77 LOPDGDD, or the obligation to designate its own DPD (Article 34.b). The claimant demands that the AEPD pronounce on “whether the competence of the data controller and the Data Protection Delegate of the Ministry is in accordance with data protection regulations for the processing of the data of the School.”

The claimant concludes by stating:

1) “The information provided to him by the data controllers is contradictory (one says that the AGREEMENT is applicable to the School of his children and the other responsible party states that it is not).” This prevents him from knowing whether the transfer of data to Google by the School is being carried out under an appropriate legal mechanism, and what the conditions under which it occurs are.

2) The forms for collecting data from the students of the school and the privacy policy of the websites of the School and the Air and Space Force, regarding compliance with the duty of Information, do not meet the parameters established by data protection regulations.

He provides Annex VIII of the form, titled “authorization for the processing of personal data and information on the exercise of legal rights,” which he considers to be incorrect. The form referred to in the right of access was submitted unsigned; this one is signed, as of 23/05/2021. Its content has already been explained. He also emphasizes that the form states that the data will not be transferred to third parties “unless it is strictly necessary for the fulfillment of the educational purposes of the School.” Therefore, in exercising his rights, he asked (Annex II, p.7) whether the transfers to third parties, especially regarding the food allergies presented by minors, are made to the contractor of the cafeteria

service, etc., or under another title, as a data processor, without receiving a response. He provides a copy of "Annex IX, medical record CMNSL," which is the form he partially submitted regarding the collection of medical data from minors previously mentioned.

3) He also provides a copy of Annex X, which contains the privacy policy of the School's website and that of the Air and Space Force, regarding compliance with the duty of information for evaluation by the AEPD.

4) He requests the adoption of provisional measures to safeguard the fundamental right to data protection with the obligation of precautionary blocking of the data and the immediate obligation to address the requested right, citing Article 68 of the LOPDGDD, estimating that in GW "especially protected health and religion data may be included" and "before the

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Denial by the Data Controller of our request for the Right to Object (Annex IV, pp. 8-9) related to the international transfer of data through the Google Workspace application, and the transfer of any data to Google, as long as the requirements for information and lawfulness of processing are not adequately met, this party deems it appropriate for that Agency to adopt a provisional measure consisting of ceasing the use of the aforementioned platform, if it is indeed not covered by the CAM-Google agreement and/or if that Control Authority indicates that it is not being used in accordance with Data Protection regulations.

5) It is considered that their confidentiality has been violated by sending the official letter dated 30/07/2021 to two departments, labeling it as official use. The letter that sent Annex IV, which contains the response to their right, does not identify him, his son, or the course, stating, "it considers that there are personal data that can indirectly identify a person."

SECOND: On 23/11/2021, a "supplement to the complaint" is received, providing:

a)

A letter from the School dated 18/11/2021, "note to families," reminding "those who have not returned the documentation required at the beginning of the course - commitment letter to comply with the Center's regulations, informative clauses regarding the use of Google Workspace, and informative clauses on Data Protection and consent that must be returned even if their refusal is noted. The non-completion of these documents or refusal regarding any of them could influence the process of renewing enrollment for the 2022/2023 course."

b)

A letter communicated by email from the complainant to the School, dated 19/11/2021, in which they indicate:

"Regarding the use of the Google Workspace platform, as the School already knows, we oppose the transfer of our children's data to that company in so far as the consent of the interested party as a legitimizing basis intervenes." "Due to the contradictory information provided by the center regarding the Community of Madrid concerning the applicability of the referenced agreement, the corresponding file is being processed before the Spanish Agency for Data Protection."

Attached is a copy of a signed letter dated 19/11/2021 that bears the School's logo and contains an informative clause on one side of a sheet. "I have read and understand the information provided by CMNSL regarding the creation and maintenance of a GW account assigned to each child, so that GOOGLE collects, uses, and discloses information about him only for the purposes described in this message," (it is unknown what this information would be, if it could be that of 5/07/2021) - It is handwritten noted "no," to read "I do not understand the information provided..." accompanied by the handwritten note "Not in agreement with the transfer of data to GOOGLE INC or any of its subsidiaries or affiliated entities."

At the bottom of the letter, it states "notification from Google WORKSPACE for Education addressed to parents and guardians," from the text:

"In this message, it describes what type of personal information we provide to Google from these accounts and how GOOGLE collects, uses, and discloses students' personal information regarding these accounts."

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With their Google Workspace for Education accounts, students can use and access the following "core services" offered by Google, described in more detail at a Google address that reviews, listing the services they can access, including but not limited to Gmail, CLASSROOM, documents, spreadsheets, presentations, and forms, "CLOUD SEARCH."

THIRD: In accordance with Article 65.4 of Organic Law 3/2018, of 5/12 on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent and to the Ministry of Education, Universities, Science, and Spokesperson of the Autonomous Community of Madrid, for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of 1/10, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), was recorded on 16/11/2021, as noted in the acknowledgment of receipt in the file. The forwarding requested an analysis of the complaint and the submission of the following information to this Agency:

FOURTH: On 7/12/2021, the respondent stated:

- 1- The School states that it addressed the request of the complainant. They attach a copy of the response. They believe they complied with Article 15 of the GDPR.
 - 2- On one hand, the complainant states that the data collection forms for the students of the School and the privacy policy of the websites do not comply with the provisions of data protection regulations. "After a thorough review process, they currently comply with the regulations," "when the complainant submitted the complaint to the AEPD, "the necessary corrections had already been made." However, they indicate that: "In light of the complainant's request for information, in July 2021 and despite the diligence shown by the School, areas for improvement in data protection were identified and were subsequently addressed," and in the section on "updating the information and consent forms for the collection of personal data," it states that "a new information and consent form for the collection of personal data was drafted, reinforcing the duty of information under Article 13 of the GDPR and Article 11 of the LOPDGDD ("Evidence 5").
 - 3- They state that "due to the health situation arising from COVID-19, organizational and resource deficiencies in the educational field were revealed, highlighting the need for a tool that would allow overcoming these difficulties in case the same circumstances arose. GW did not require complex prior training for users, it was free, "if certain organizational conditions were demonstrated."
- "After the AGREEMENT signed by the Ministry of Education of the Community of Madrid appeared (BOCM 24/06/21), it was reinforced to initiate the application process."
- "Google initially accepted the School's request for access for a trial period of two weeks. After this, in November 2020, GOOGLE granted the definitive authorization that was materialized by the School in the acceptance of the "terms of use" before the

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first access.

It was understood as an adhesion agreement in which both parties committed to what is specified in the terms of use." They attach the URL

https://edu.google.com/intl/ALL_es/why-google/privacy-security/, which does not lead to the signed contract but to the GOOGLE page, "Google for Education" "Privacy and Security Center" that informs about the tool and provides information on the versions, "Education Fundamentals," "Teaching and Learning Upgrade," "Standard," and "Plus."

"With the aim of having the Workspace platform ready for use during the 2021-2022 school year, a document was sent to the families of the students last summer informing them of the decision to

establish Workspace as the educational platform for remote teaching. Authorization was requested to assign an email account to each student, so that Google would collect and process the information of each of them for the educational purposes described. Thus, upon receiving the authorizations, the students' emails were created, with the domain @colegiomenorloreto.es. Each family was informed of the assigned email name, requesting them to activate the account by generating an automatic password, a necessary condition for the account to be operational." "In the case of the claimant, he expressed his disagreement with the use of Workspace, rejecting its use, so the accounts of his children were not activated."

4- "After the complaint received in July, and following the internal audit conducted by the LOPD Office of the EA, with the collaboration of the Process Control Offices and the DPD-MINISDEF, a doubt arose regarding the viability of using GW, which led to a consultation with the AEPD through the DPDMINISDEF, according to the partial copy provided, which resulted in the response from that Agency, 'the use of said platform is provisionally suspended' until a definitive solution is found." A copy of the consultation is provided in the terms made on 07/10/2021, answered by the AEPD on 15/11/2021, only the first page, regarding "the use of the Google Workspace for Education platform for the 21/22 school year based on the collaboration agreement between the Community of Madrid and Google Ireland dated 10/06/2021, which enables all educational centers to use Google tools in the teaching process."

The response from the AEPD indicates two links regarding the cloud services guide and informs that the services referred to as cloud or "cloud computing" will be carried out through a service provision contract or another legal act in accordance with the law, and it is essential that the guarantees required by the GDPR, Article 28, are incorporated among its clauses, indicating various documentation regarding the data controller and the processor.

5- Regarding the conditions under which data is transferred to Google, it states that this is addressed in the link that mentions the conditions of the contract.

6- "They have not responded to the claimant as they became aware of the existence of the complaint from the interested party to the AEPD upon receiving this request."

7- Regarding the measures adopted to prevent similar incidents from occurring, the dates of implementation and controls to verify their effectiveness, they indicate that between July and September 2021, and before the start of the school year, they carried out:

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a) An internal audit to verify the actual situation of the school regarding Data Protection. They provide "evidence 3," which consists of a document dated 6/09/2021, from ***POSITION.1 to ***POSITION.2 informing about the inspection visit to CMNSL on 29/09/2021 and states that they will create a GDPR compliance checklist: LOPD and another called "online adequacy" for completion by the center. No copy of the results and assessment of this audit is provided.

b) Hiring a data protection consulting firm.

Conducting an external Data Protection audit with the aim of reinforcing the points identified as needing improvement. They provide "evidence 4," only the first page from which it is inferred that it was conducted on 13/08/2021, titled "GDPR-LOPDGDD audit report," indicating their willingness to provide the rest.

d) A drafting of a "new informative and consent form for the collection of personal data" was carried out. They provide "evidence 5," "Updated informative clause," "informative clause on Data Protection and consent," which gathers "the information regarding the processing of personal data that the School will carry out for the management of educational activities," highlighting the following;

- "We inform you that the personal data you provide will be processed by the MINISTRY OF DEFENSE-AIR FORCE as the Data Controller to which the COLEGIO MENOR N.ª SEÑORA DE LORETO is affiliated and incorporated into its processing activities for the following purposes: Formalize and manage enrollment in the school.

Process the student file. In this case, all information strictly necessary to fulfill this purpose will be processed, including images of the minor for the identification of their file.

Manage scholarship and study aid applications.

Manage any necessary medical treatments to be carried out in the center's first aid kit, as well as the processing of relevant medical data to ensure the health status of the student in the educational center and guide them in their school activities in accordance with the LOE.

Perform the guiding and educational function, for which it is necessary to know the personal and social circumstances, as well as the social and personal circumstances of their parents or legal guardians or any other relevant circumstances to these functions. The center may conduct any questionnaires, surveys, and interviews it deems necessary, solely for the purpose of fulfilling this objective while ensuring the proportionality of the same.

Manage the cafeteria service. In this case, among the personal data processed, there will be health data (allergies and/or food intolerances) to ensure the health of the minor.

Manage extracurricular activities.

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I authorize the processing of data to manage the extracurricular activities in which the student enrolls, as well as the possible transfer of data to the AMPA or organizing centers of the activities such as museums, exhibitions, etc.

Record image/voice in activities or events organized by the center.

I authorize the use of image/voice for dissemination purposes on the web and other media.

- The basis of legitimacy is informed, stating regarding "managing medical treatments and the psychological file," "managing the cafeteria service" as the fulfillment of a legal obligation, Article 6.1.c) of the GDPR, and those considered as educational functions which include among others:

"(i) formalizing and managing enrollment in the center, (ii) processing the school file, (iii) managing scholarship and study aid applications; (iv) managing medical treatments and the psychological file, (v) performing the guiding and educational function.

Another legitimizing basis is "express consent" "6.1.a)" for (vii) managing extracurricular activities, and (viii) use of image/voice in activities and events.

"Students or their legal guardians can exercise their rights of access...".

e) Review and implementation of protocols, such as "exercise of rights," "security breaches," "functions and obligations of personnel with access to data," "password policy," "protection of data from computer equipment in classrooms," noting that it is included in the copies of evidence 6 to 11.

f) "The mandatory legal texts on the school's website have been reviewed and corrected: "Legal Notice," "Privacy Policy," and "cookie policy." It indicates the URL that directs to it at:

<https://ejercitodelaire.defensa.gob.es/EA/Loreto/NotaLegal/> where, upon entering, it states "recipient and conditions of use of the portal ejercitodelaire.mde.es," and informs about the ownership of the domain: Ministry of Defense and the general conditions of the portal and access and use. In "Privacy," it states:

"The Air Force (Ministry of Defense) is the entity responsible for the processing of data generated with the personal data provided by users either through the contact form of its Electronic Headquarters."

"The collection and automated processing of personal data aims to manage, provide, expand, and improve the services requested at any given time by the user and to follow up on inquiries raised by users."

On the same page, in the upper right margin, it states: Colegio Menor Sra. de Loreto and below several informative drop-down tabs about it.

g) - Treatments were identified for which an impact assessment was required, and it was specified that this would be when they involved two elements: the use of special categories of data referred to in Article 9.1 of the GDPR (health data of the School) and "of vulnerable subjects or at risk of social exclusion, including data of (...)." Evidence 12 is attached, only the first page, dated 13/10/2021,

indicating that it is
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may require.

h) A "risk analysis and implementation of appropriate security measures" was carried out for the treatment "E.A. Management of Educational Centers" of the EA, providing evidence 13, only the first page, 20/07/2021, "activity report," indicating that it may require.

ii) They have conducted two training sessions since November 2021, evidence 14.

FIFTH: On 17/12/2021, the Ministry of Education, Universities, Science, and Spokesperson of the CCAA of Madrid responded to the transfer of the complaint, indicating that it received an inquiry from the complainant regarding the use of GOOGLE W in the CMNSL.

It provides annex 3 with the response given to the complainant on 3/12/2021, specifying that "the use of the services under this agreement is reserved for non-profit public educational centers of the Community of Madrid and that the complainant's children attend the center. Colegio Menor Nuestra Señora de Loreto is a private center for early childhood, primary, and secondary education, whose ownership belongs to the Board of Orphans of the Air Force; therefore, the agreement signed by the Ministry of Education with Google does not apply to this center."

In annex 4, the Data Protection Delegation states that the inquiry from the complainant was responded to, indicating that the use of Google for Education services under the signed agreement is for public educational centers of the Community of Madrid; therefore, the agreement does not apply to private educational centers such as Colegio de Nuestra Señora de Loreto.

SIXTH: On 19/01/2022, the Director of the AEPD resolved to archive the proceedings and notified both parties.

SEVENTH: The complainant filed a request for reconsideration, assigned as RR/00107/2022, in which he indicated:

1. The school sent him an email and an attached document on 21/01/2022, from which it is inferred that the GOOGLE account for his children was created "even before obtaining the consent of their parents or guardians."

He provides a copy of document 2, an email titled: "information about Google accounts" with an attached note about GOOGLE WORKSPACE, the literal text of which is as follows: "Families: From the school, we are preparing to implement the Google Workspace platform. All families that signed the authorizations for the platform can already operationally access the institutional email created for each student. This email account will last for the entire academic life of the students at the center. In your case, since you have not signed the consent for the use of the GW platform, we will proceed to deactivate your children's account, and they will not be able to use the videoconferencing or storage tools of the platform. If you do not wish for this to occur, you must send the attached signed documentation as soon as possible to the address ***EMAIL.1."

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2. It is inferred that the Agreement does not cover the use that the School was already making of GOOGLE tools (on 12/07/2021, when the School informed about the creation of accounts, "and sends the keys to the parents and guardians") and "the transfers that had already been made of the minors' data." It refers to the effects of the denial of the right to object to the processing presented along with the access request in response to 2/08/2021 when their data was being processed.

It provides as Document 4, a copy of the informative clause signed by the claimant on 19/11/2021, along with the information referred to therein. This is information from the School, which the claimant states was sent to him in October 2021, indicating:

“At the Colegio Menor Nuestra Señora de Loreto, we use Google Workspace for Education, and we inform you of all relevant issues regarding this platform, in order to ensure the principle of transparency. From the Colegio Menor Nuestra Señora de Loreto, we will create a Google Workspace for Education account for your child/ward and manage it on their behalf. Google Workspace for Education is a set of productivity tools from Google designed for teaching, used by tens of millions of students and teachers around the world, including Gmail, Calendar, Documents, Classroom, etc. At the Colegio Menor Ntra. Sra. de Loreto, students will use their Google Workspace for Education accounts to complete assignments, communicate with their teachers, log in to their Chromebooks, and acquire skills relevant to 21st-century digital citizenship. This message answers common questions about what Google can and cannot do with your child's personal information, including:

- What personal information does Google collect?
- How does Google use that information?
- Will Google disclose my child's personal information?
- Does Google use personal information from students in primary and secondary educational institutions to segment advertising?
- Can my child share information with other users through the Google Workspace for Education account?

Please read this information carefully, consult us with any questions you may have, and then sign below to indicate that you have read this notification and that you understand the information. This provider, like any other contracted by the School, is necessary for proper academic monitoring and the correct provision of educational services, so this notification is merely informative. This provider is secure, and this contracting has been carried out based on an agreement signed by the Community of Madrid, which guarantees its security.

It is followed by a “I have read and understand the information ...” to be signed by the parent on 19/11/2021, as already mentioned.

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Below the signature space, there is more information about the use of accounts, referring to “GW Privacy Notice” for information about the data collected from GW accounts and about “how that data is used and disclosed.” In another section: What information does GOOGLE collect? and How does GOOGLE use that information? indicating also that “it may carry out international data transfers, which are secured by Standard Contractual Clauses approved by the European Commission and guaranteeing a level of security similar to that established in the European Data Protection Regulation.”

In the final section, it states:

“If you have any questions about how we use Google Workspace for Education accounts or the options available to you, please contact the Data Protection Coordinator of the center via the following email: (...)@cnsloreto.com,” and it concludes by stating that the “main services of Google Workspace for Education are provided to us in accordance with the Google Workspace for Education contract,” referring to the URL and “the addendum on data processing” available at another URL reference. It also provides an email dated 12/07/2021 from the School to the claimant (doc 5), titled: “User and password for the Workspace for Education platform,” “as explained in the previous email, attached in pdf file, user and password to access the WORKSPACE platform.”

It provides the welcome notes from GOOGLE INC to (...), dated 8/07/2021, notifying that “you have a new Google account in the organization colegiomenorloreto.es. Log in to your Google account to access the services offered in your organization. If the organization has Google Workspace, the Google services may include business versions of Google Drive, Gmail, and other Google services that you can use to collaborate with your team.”

It indicates the username, which is the first name and first surname with @colegiomenorloreto.es and

the password, along with the login link at workspace.google.com, signed: "the GOOGLE Cloud team." The claimant indicates that an "international transfer" was made, "not informed or consented" without the guarantees required by the GDPR.

It adds an incongruity of omission for not having addressed all matters in the resolution.

EIGHTH: On 26/05/2022, the appeal is forwarded to the respondent, who on 7/06/2022 states:

1) "The accounts (...) were not and have not been activated at any time. Therefore, at no time have the data of the minors represented by the claimant been exposed.

2) The response to the inquiry given by the AEPD regarding the feasibility of using GW was forwarded to ***CARGO.2, which is responsible for the Colegio Menor Nuestra Señora de Loreto, through C/ Jorge Juan, 6

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Through the document dated 18/11/2021 (evidences 1, 2, 3) "the use of said platform was provisionally suspended until a definitive solution was found." "On 02/12/2021, the Director of the Center communicated to the LOPD Office of the Air Force a document in which he highlighted the problems that could arise from not having a platform to conduct classes online, in the event that a lockdown of the students occurred as a result of the pandemic caused by COVID-19 (evidence 4)."

On 13/01/2022, the Director of the center communicated to the LOPD office of the EA a document (evidence 5) regarding the situation of the School and the GW tool, indicating that through a "contracted consultant," it was verified that international transfers were being made, and an analysis of these transfers was conducted along with an analysis of the standard contractual clauses. The resolution of the AEPD TI/153 2017 was taken into consideration, which concluded that the guarantees established in the model contracts provided by Google for the international transfer of data to the entity established in the United States, acting as a data processor, were adequate, "despite being aware that these circumstances have changed since the date of the resolution."

"This school will proceed to use the aforementioned platform starting next week."

"The school has received information about the normal use of the application by public schools in the Community of Madrid."

The LOPD Office of the EA, in a document dated 17/01/2022 (evidence 6), among other issues, "recommended to the Director of the Center to carry out the drafting of a data processing agreement with Google Ireland Limited for the use of the Google Workspace for Education platform, which should include the standard contractual clauses developed by the European Commission, previously mentioned." It refers to the preparation of a legal report commissioned to the Legal Advisory of the EA, which would conclude that the collaboration agreement signed between the Community of Madrid and Google Ireland Limited is not applicable to the Colegio Menor Nuestra Señora de Loreto.

The School responded on 19/01/2022 that the consulting firm they hired in August 2021 for advice and support in this area prepared a report that was sent to that EMA and that "indicated that the data processing is carried out with the company GOOGLE LIMITED IRELAND, located in Ireland, not being considered international transfers for the purposes of the application of the GDPR, acting as a processor, never as a recipient of data transfers," and that "although this center does not participate in the Community of Madrid's Agreement with GOOGLE, its application to public schools can be transferable to non-public schools," since the platform is the same, of a generic nature."

The LOPD office of the EA states that the consultant's report is provided as evidence 8, a copy of a "legal report on the proportionality analysis of the use of Google Workspace and the resolution of the AEPD," dated 1/01/2022. In conclusion, the report states:

"GRUPO ADAPTALIA, acting as an external and independent consultant of the Center, determines that the use of Google should be evaluated for the next academic year, in light of the prohibition by some regulatory authorities on the use of certain platforms."

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Google, valuing a platform that does not carry out transfers outside the EEA. Likewise, ... it could be considered that the use of the platform is understood to be lawful temporarily, at least until the AEPD reaches its definitive conclusions regarding international transfers to the USA. Similarly, due to the operational disruption that could affect the training of students, it is determined that during the current academic year, the use of the platform will be proportional and adequate, also complying with security matters and the rest of the formal obligations such as the data processing agreement, information retention, etc., already regulated through its General Terms of Use, which also act as a regulatory contract for the relationship between the parties.”

On 24/01/2022, a document numbered ***ESCRITO.1 was received in the LOPD Office of the Air and Space Force from the Director of the Center (evidence 10), in which it is communicated that a data processing agreement with Google is going to be proposed, but that while it is being carried out, the Center will continue using the aforementioned platform.

According to the respondent, from various exchanges of documents between the LOPD EA office and the Director of the Center on 25/02 and 2/03/2022, it is indicated that the Director of the Center was using the application.

On 7/03/2022, the LOPD office of the EA submitted a document to ***CARGO.1, communicating the summary of actions carried out since the date that began on 18/11/2021 (evidence 13).

It provides a copy of evidence 17 in which the LOPD EA office urged on 27/05/2022 the cessation of the use of GW.

It concludes by indicating that the LOPD office of the Air Force, as the working body of the data controller of the Air and Space Force, has at all times recommended to the School the application of the different guidelines set by the AEPD. Although the School stated in one of its documents the intention to proceed to draft a data processing agreement, it is true that it has not yet been carried out. “In any case, the center has always aimed to guarantee the right to education of the students in the event of a possible confinement.” It considers that the data of the claimant's children have never been exposed.

NINTH: On 15/06/2022, it is agreed:

“TO ESTIMATE the appeal for reconsideration filed against the resolution of this Agency issued on 19/01/2022, by which the filing of the complaint referred to the MINISTRY OF DEFENSE was agreed.”

TENTH: On 5/12/2022, the Director of the AEPD agreed:

“TO INITIATE SANCTIONING PROCEDURE against the MINISTRY OF DEFENSE, (AIR AND SPACE FORCE - ***CARGO.1) with NIF S2801407D, for the alleged infringement of the GDPR, articles:

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-28, in accordance with article 83.4 a) of the GDPR, classified as serious for the purposes of prescription in article 73.k) of the LOPDGDD.

-13, in accordance with article 83.5 b) of the GDPR, classified as minor for the purposes of prescription in article 74.a) of the LOPDGDD.”

“for the purposes provided in art. 64.2 b) of the LPACAP, the sanction that may correspond would be a warning for each of the infringements attributed, without prejudice to what results from the instruction.”

ELEVENTH: On 22/12/2022, allegations from the respondent were received, in which it states:

1- Regarding the non-identification of the data controller in the forms, it is noted that in all of them the corporate web address of the electronic headquarters of the Ministry of Defense is provided, to which the interested party can address to exercise their rights.

At this address, access can be gained to the Registry of Processing Activities of the EA, in which the data of the data controller ((...)) is listed, so the data controller is indeed identified.

It states that it was communicated to the School that it should add said controller, and provides evidence 1, in Annex 1, in which the document “informative clause on data protection and consent” appears, highlighting, among other aspects, the same content as that provided in the transfer, in evidence 5:

- The “***CARGO.1” is informed as the data controller
- In purposes, references appear in different sections, to the management of enrollment, the school record, scholarships, treatments with medical data to guarantee the health status of the student connecting them with another specific purpose of: “management of the cafeteria”, “video surveillance of facilities” and the “guidance and educational function” in which, moreover, it refers to the need to know personal and social circumstances and that the center may conduct questionnaires, surveys, and interviews.
- Regarding the bases of legitimacy for the processing, the following stand out:
For the video surveillance of the facilities, the public interest, art 6.1.e) of the GDPR.
Within the compliance with a legal obligation, art 6.1.c) of the GDPR, it applies:
For all those purposes understood as educational function, which includes:
 - management and processing of enrollment and the school record,
 - study aids,
 - Managing medical treatments and relevant medical information. Managing the cafeteria service,
 - Performing the guidance and educational function.

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2- Regarding the infringement of Article 28 of the GDPR, it is noted that “there is a generic adhesion agreement” available to users of the GW platform, configured by a series of closed contractual clauses that establish the conditions for the parties. This is a standard contract, the same for all its clients, in which users have no possibility of negotiating the terms, understanding that the acceptance of the aforementioned adhesion agreement would constitute sufficient title to fulfill the provisions of Article 28 of the GDPR. It provides as evidence 2, in ANNEX 2, “CLOUD DATA PROCESSING - Addendum” in English.

It is indicated:

A)

This Cloud Data Processing Appendix, including its appendices (“Annex”), under which Google agreed to provide Google Cloud Platform, Google Workspace, or Cloud Identity (each as defined below), as applicable (the “Services”), to the Client. This Annex was previously known as the “Security and Data Processing Terms” under an Agreement for Google Cloud Platform and the “Data Processing Amendment” under an Agreement for Google Workspace or Cloud Identity.

This Annex will come into effect and replace any previously applicable terms regarding the processing of Client Data, including the Security and Data Processing Terms or the Data Processing Amendment, as of the Effective Date of the Annex (as defined below).

In section 2, there are “definitions” and the assumptions that may arise, for example, of the “adequate country,” depending on the data processed, “subject to the EU GDPR,” “from the United Kingdom,” “Switzerland,” and the solutions for data transfers.

For the description of services such as GW, GOOGLE CLOUD PLATFORM, it refers to a different link. It also explains the various roles and regulatory compliance that may arise, referring to Appendix 1, if European data protection law applies to the processing of client data, with GOOGLE being a data processor and each party will fulfill the obligations applicable to it under European data protection law regarding the processing of client data.

5.2

Scope of Processing

5.2.1 Compliance with Client Instructions. The Client instructs Google to process Client Data in accordance with the applicable Agreement (including this Annex) and the applicable law solely: (a) to

provide, secure, and monitor the Services and TSS; and (b) as specified further through (i) the Client's use of the Services (including the Admin Console and other features of the Services) and TSS, and (ii) any other written instruction provided by the Client and acknowledged by Google as constitutive instructions under this Annex (collectively, the "Instructions"). Google will comply with the Instructions unless prohibited by European legislation.

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5.2.2 Instruction Notifications. Without prejudice to Google's obligations under Section 5.2.1 (Compliance with Customer Instructions) or any other right or obligation of either party under the applicable Agreement, Google will promptly notify the Customer if, in Google's opinion: (a) European legislation prohibits Google from complying with an Instruction; (b) an Instruction does not comply with the European Data Protection Law; or (c) Google cannot comply with an Instruction, in each case unless such notification is prohibited by European Law.

5.3 Additional Products. If Google, at its discretion, makes additional products available to the Customer for use with Google Workspace or Cloud Identity in accordance with the applicable Additional Product Terms:

- a. The Customer may enable or disable additional products through the Admin Console and will not need to use additional products to use Google Workspace or Cloud Identity; and
- b. If the Customer chooses to install Additional Products or use them with Google Workspace or Cloud Identity, the Additional Products may access Customer Data as necessary to interoperate with Google Workspace or Cloud Identity (as applicable).

For greater clarity, this Annex does not apply to the processing of personal data in relation to the provision of any Additional Product installed or used by the Customer, including personal data transmitted to or from such Additional Products.

"Google Security Measures. Google will implement and maintain technical, organizational, and physical measures to protect Customer Data against destruction, loss, alteration, unauthorized or accidental disclosure or access, or illegal access, as described in Appendix 2 (the "Security Measures"). The Security Measures include measures to encrypt Customer Data; to help ensure the confidentiality, integrity, availability, and ongoing resilience of Google's systems and services; to help restore timely access to Customer Data after an incident; and for periodic effectiveness testing. Google may update the Security Measures from time to time, provided that such updates do not result in a substantial reduction in the security of the Services."

10. Data Transfers

10.1 Data Storage and Processing Facilities. Subject to Google's data location commitments under the specific service terms and the remainder of this Section 10 (Data Transfers), Customer Data may be processed in any country where Google or its subprocessors have facilities.

The date of the last version of the information is not listed.

"The LOPD office of the EA requested the College to carry out a service provision contract or similar to adapt the current data protection regulations of the GW platform. The College contacted GOOGLE, which responded that they do not contemplate."

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to subscribe specific contracts with each user. Evidence 3, from annex 3, includes a document from the Director of the School dated 27/03/2022, regarding the report on the analysis of the proportionality of the Google Workspace for Education platform, only the first page, addressed to (...). It states that "after receiving the communication regarding the recommendation to subscribe to a data processing agreement made by the Data Protection Officer of the Ministry of Defense, contact was made with

Google, which responded that only what is stated on its own website is applicable and that the Workspace for Education tool complies with the provisions of the GDPR. Additionally, they added that they do not consider the possibility of subscribing specific contracts with each user."

"After evaluating the situation, it was concluded that any subscription of the specific agreement with this provider could not be carried out by the School, ordering the immediate cessation of the use of the platform, in case it was occurring." Evidence 4 includes a document regarding; notification AEPD CMNSL, dated 27/05/2022, addressed to the Personnel Command of the EA, indicating that they will soon receive an official communication informing them of the immediate cessation of the use of the GOOGLE WORKSPACE for Education platform, and in case of using the aforementioned educational platform, the preparation of the corresponding data processing agreement between CMNSL and GOOGLE.

Another document dated 30/05/2022 indicates that a hearing has been granted in the appeal for reconsideration filed by the complainant and requests the cessation of the platform.

TWELFTH: On 2/07/2023, a procedure for evidence is initiated, incorporating the documents derived from the complaint and those obtained in the transfer.

Additionally, the allegations to the initiation agreement of the referenced sanctioning procedure presented by the respondent and the accompanying documentation are considered reproduced for evidentiary purposes.

Furthermore, the respondent is requested to provide or respond to the following questions:

a) In their response to the transfer of the complaint, dated 7/12/2021, already initiated in the 21/22 academic year, they stated that:

"The Colegio Menor Nuestra Señora de Loreto is part of the Personnel Command of the Air Force (EA) and, therefore, the data controller for the data carried out by this entity is ***CARGO.1."

To this end, they are requested to provide a copy of the regulation or resolution that assigns to the aforementioned position (***CARGO.1) the competence as the controller of the aforementioned processing. Powers that have been exercised in the development of this function regarding the processing of data from the GOOGLE SUITE application implemented during the pandemic and specifically at CMNSL in the years and academic courses 20/21 and following.

On 10/07/2023, a response is received stating that as EVIDENCE 1 of the Activity Record of Processing of the EA that appears on the website of the Ministry of Defense, accessible through the link:

[https://sede.defensa.gob/acceda/tablon/descargafichero? \(...\)](https://sede.defensa.gob/acceda/tablon/descargafichero? (...)). Entering the headquarters, utilities, bulletin board, record of activities of processing, Air Force and of the Spain

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Incorporates the Register of Processing Activities, June 2022, downloadable PDF version, in which "EA management of Educational Centers" is listed, and in the section for the responsible party, it states (...).

It is added that "The data controller became aware of the use of the aforementioned platform by the CMNSL when they received notification through the DPD Office of MINISDEF regarding the complaint filed by the interested party with the AEPD.

b) Given that the information regarding the collection and processing of data is not produced "online," and is filled out in a document manually by the parents of the (...), it is requested that they provide the document in which they were informed and authorized the processing for educational purposes for the 2021/2022 academic year at the CMNSL, and inform on what dates it was modified and why, and whether this document has been filled out for students in the annual enrollment process, and during what period it should be completed.

They provide EVIDENCE 2, which is a form that states it was delivered to families in September 2021, and is no longer required, as GOOGLE WORKSPACE for Education is not used. According to them,

the form has been the same since the mentioned date, when the platform began to be activated, until it ceased to be used. The form is titled "Direction," "Dear Families," and informs about the use of GW, the tools it contains, and that an account will be created for their child, to complete tasks, communicate with their teachers, and acquire digital skills through GOOGLE as a provider, necessary for proper school monitoring and provision of educational services. It is indicated that the information should be read and "sign below to indicate that you have read this notification and that you have understood the information." On a second page, it states: "I have read and understand the information provided by the School regarding the creation and maintenance of a GW account assigned to my child and for GOOGLE to collect, use, and disclose information about them solely for the purposes described in this message." At the end of the page, it states "notification of GOOGLE W for Education addressed to parents and guardians" and that: "This message describes what type of personal information we provide to GOOGLE...". Subsequently, it indicates the services that can be accessed, the notices, and the privacy policy of GW, the personal information that GOOGLE collects and how it is used. It also states that the services are provided in accordance with the GW contract, the "terms," and the "Data Processing Addendum," indicating the links, although it is contained before that "the contracting has been carried out based on an agreement signed by the CCAA of Madrid, which guarantees its security."

They add that if they have further questions, they can contact an email account of the School.

c) In the same vein, with the sheet for the collection of medical data, "medical form."

They provide a form for the 21/22 academic year "Medical Form," which they state was modified at the beginning of the course and was delivered along with the form "informative clause on data protection and consent."

The medical form is signed by the father and mother or legal representatives, containing questions such as "vaccination calendar up to date," yes/no to mark, in the same sense "previous illnesses, medical history," and a section to indicate which, "sequelae," "chronic illnesses," medical treatment, attach a copy of the medical report.

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equal for "allergies." In an informative literal "legal notice," information regarding liability in risk or emergency situations is included, and in the "informative note," it states that "The educational center will only collect those forms from families that have signed the informative clause on data protection and consent."

d) In the development of the accreditation of the compliance measures implemented in the GDPR (art 5.2) and in the LOPDGDD, and in relation to the procedure, it is requested that they provide:

1- Dates when the GOOGLE WORKSPACE for Education platform was registered and used in the years 2020 and 2021 at CMNSL and differences in the implementation of both years. A copy of the report of having provided the school's data to GOOGLE for the acceptance of the terms of use and the date and content of such contractual terms.

It was responded that according to the Director of the School, it was requested in 2020 with students or entire classes confined, and it was granted by GOOGLE on 6/11/2020 with the "mandatory acceptance of the terms of use before the first access, but it was not implemented until the following academic year. During July 2021, prior communication to families, "the GW emails for teachers and families were created, sending a document with username and password," being necessary to activate the accounts for them to be used, and the claimant's account had not been activated, which he could never use.

"The entire process described was carried out through the web service that Google makes available to those interested in using Workspace. Therefore, the School understood it as an adhesion agreement whereby users accept the terms that Google offered." "There was no report of data to Google from the School because each family accepted the account conditions individually."

"As explained previously, it was from July 2021 that the School began to register users with prior

authorization."

In EVIDENCE 4 that accompanies, there is the "communication to families dated 5/07/2021" already seen. It states that in August and September 21, the forms were adjusted to the current law and protocols for the use of computer equipment were issued, providing evidence 4-A.

e) A copy of the signed contract, or other legal act by which during the 21/22 academic year, or from it, GOOGLE is entrusted with the management of the use of the GOOGLE WORKSPACE solution for education at CMNSL. Periods in which GOOGLE WORKSPACE has been put into operation.

Categories of data that could be used and information and subjects dealt with (video classes, grades, assignments, etc.) in classes of (...). If it is still being used currently, and with what frequency.

It indicates through what the Director of the School informs that it is not a contract but an adhesion agreement to some terms of use that every user subscribes to through the "terms of use," considering this as those other acts in accordance with the law for the processing assignment.

It considers that a data processor was chosen that offers sufficient guarantees and provides the data controller with all the necessary information that demonstrates this. It provides a link:

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https://edu.google.com/intl/ALL_es/why-google/privacy-security/, regarding the privacy of students and teachers

It indicates that families were informed about the design of the accounts as stated in EVIDENCE 4 (07/05/2021) and "filled out a form authorizing the use of the platform" (09/2021 printed "I have read and agree") EVIDENCE 2 referred to, in which, moreover, there is no indication of authorization for the application nor any element regarding structured information on the aspects of data collection required by Article 13 of the GDPR, such as the applicable legal basis, and the purpose not of the application but of the processing as well as the exercise of rights, to cite just a few deficiencies.

It provides in EVIDENCE 4 B, as terms of service of GOOGLE effective from 01/05/2022, without it being clear which service it pertains to. It is indicated that it is contracted as a service provider with GOOGLE IRELAND. In "duration," it states that "this license is valid..." "For some services to function, it is mandatory to have a GOOGLE account, for example, to use Gmail you need a GOOGLE account, because this way you will have a place from which to send and receive your emails."

It states that, in early childhood and primary education, it was used sporadically and residually, with restrictions on the use of (...) of some applications such as YOUTUBE, while its use in secondary education was more intense, especially the CLASSROOM tool. "GOOGLE was not entrusted with any management of use."

The Director of the School informs that the platform began to be used in July 2021, as families accepted the terms of use of the same.

Upon receiving at the end of May 2022 the letter from the EMA indicating the non-use of the platform if there was no formal contract between GOOGLE and the School, the use of the platform at the School was ceased.

In November 2021, the School communicated to SAP/MAPER that it would stop using the platform "while the AEPD resolved the complaint." In January 2022 "we were informed of the withdrawal of the lawsuit, so we understood that the platform could be used," then the complainant appealed and it was subsequently admitted for processing, which is why it was stopped again, this time at the end of May 2022, and it has not been used since then. It provides a copy of the letter from ***POSITION.3 to ***POSITION.2, dated 30/05/2022, indicating the complainant's appeal to the AEPD and that while it is being processed, the use of the educational platform of G Workspace for Education in the CMNSL should be suspended provisionally and that the processing assignment should be immediately prepared.

f) What difference existed between the implementation of GOOGLE WORKSPACE for education in the School in the year, academic year 20/21 and in the following one, 21/22? What domain name was used in each year for GOOGLE SUITE for education?

It responds that in the academic year 20/21 the platform was not used and that the domain used was always colegiomenorloreto.es.

Google announced around February 2021 a change in the name of the platform to Google Workspace for Education and that current customers of Google Suite for Education and Enterprise for Education would begin to see the new editions, Google Workspace Education Fundamentals, and Education Plus in the administration console.

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g)

Origin and copy of one of the documents with which the Google accounts were created for the 21-22 school year that were sent to families, the date range they had for submission (the claimant is aware of the creation dates of the GOOGLE accounts of (...) and (...) on 08/07/2021).

Terms provided for the teaching delivered for those who did not give permission for the use of GOOGLE WORKSPACE for that school year, specifically how the class for (...) of the claimant was conducted during the period of use of these tools (in their responses, they state on several occasions the interruption of the use of the tool during the course).

It is stated that with the intention of implementing the Google Workspace platform for use during the 21/22 school year, during the summer of 21, a document was sent to families informing them of the decision to use it as an educational platform for remote teaching, assigning an account to each student as evidenced in evidence 4 already seen.

Once the students' emails with the domain colegiomenorloreto.es were created, each family was informed of the assigned email name so that they could activate the account by generating a password to make the account operational. A key is provided, and they are required to establish a new password that only they will know, a necessary procedure for the effective creation of the account.

Due to the claimant's disagreement regarding the use of Workspace, rejecting its use, the accounts (...) were not registered or activated, and therefore could not use the platform.

It is noted that the classes for the 21/22 school year were initially in-person, except in specific cases of students in quarantine, never in the case of the claimant, using tools from the platform, and not using any of the GW tools to teach (...) of the claimant.

h) Instructions, if any, from the data controller, ***POSITION.1 to the Director of the School regarding that treatment or intervention if there was any from the aforementioned responsible party.

Role of the data controller and the Data Protection Delegates in establishing the information documents regarding the collection and processing of data at the educational center CMNSL and in the implementation of the tool in the years of the 20/21 and 21/22 courses.

It is stated that on 25/03/2022, a recommendation was forwarded to ***POSITION.4, with a copy to ***POSITION.5, to carry out the drafting of a data processing agreement with Google Ireland Limited for the use of the "Google Workspace for Education" platform, which should include the standard contractual clauses developed by the European Commission, published on 04/06/2021 (carried out on 17 and 22/01/2022). It provides (EVIDENCE 8), which is a signed document by ***POSITION.3, in which the Legal Advisory of the EA also states the non-application to CMNSL of the GOOGLE-CCAA of Madrid collaboration agreement regarding the use of GW, being sent as one of the various annexes to the document. It also states that on 02/03/2022, a document was received from CMNSL communicating that it planned to continue using the platform, having a report prepared by a company of the ADAPTALIA GROUP.

On 30/05/2022, the notification from the Spanish Agency for Data Protection and a document from the Data Protection Delegate of MINISDEF was sent, communicating the immediate cessation of the use of the GOOGLE WORKSPACE FOR EDUCATION platform by the Colegio Menor Nuestra Señora de Loreto (EVIDENCE 10).

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While the School expressed in one of its writings the intention to proceed with the drafting of a data processing agreement, it is true that this has not yet been carried out.

The Director of the School, who indicates that he has always acted with the aim of guaranteeing the right to education for students in the face of possible lockdowns due to the COVID-19 pandemic, reports:

“In March 2022, the General Secretariat of the EMA indicated the signing of a data processing agreement between the school and Google (EVIDENCE 8). Ongoing conversations with GOOGLE indicated that contracts with users are not contemplated, but rather online adhesion agreements.”

“There was a second occasion when the School was asked to sign the contract, but with the same result.”

He indicates that “the data controller and the DPO of MINISDEF had no prior knowledge or participation in the drafting and establishment of the data collection documents and the implementation of the GW tool.”

The Director of the School informs:

“The documents prepared by the school, directed to families, while taking into account the affected provisions, are considered internal procedural documentation at the functional level between the school and the families; therefore, it is not deemed appropriate to involve higher bodies or authorities from the Ministry of Defense or the Air and Space Army.”

i) Regarding the “informative and consent form for the collection of personal data” in the CMNSL:

1- A copy of the current “informative and consent form for the collection of personal data” in the CMNSL and the dates on which it is delivered and collected by the School from the parents of (...). A brief summary of the modifications in its versions, additions, improvements, or omissions.

He responds that since the 21/22 school year, the form provided, EVIDENCE 3 A, has been used, which modified a similar previous one that referred to an already obsolete regulation.

The aforementioned document is the so-called “informative clause on Data Protection and consent,” with a version in EVIDENCE B of the same document with practically identical content.

2- In the information of said form, it states as a basis for legitimacy compliance with a legal obligation, Article 6.1.c) of the GDPR, all of which he considers “educational function.” He believes that both elements concur in the collection of data for the management of medical treatments and the psychological file, as well as the management of the cafeteria. He is asked to indicate which regulation specifically imposes these treatment obligations and why both are considered educational functions. He replied that “All functions developed in the center that affect students and are carried out by teaching staff are considered educational; undoubtedly, both files, medical and psychological, are of special interest for teaching.” In the AEPD Sectorial Guide itself, “Guide for Educational Centers,” on pages 9 and 10, it states verbatim:

....” In the educational field, it is common, especially, to process data related to the physical or mental health of students, including the provision of health care services that reveal information about their health status. Educational centers often collect, through their medical services or first aid kits, health data related to injuries or illnesses that students may suffer during their stay at the center.

They also collect health data from students for the exercise of the educational function, physical or mental disabilities, for example, from ADHD syndrome.

To provide cafeteria services, it is also necessary to collect health data that allows knowing which students are celiac, diabetic, or suffer from food allergies. Health data is also contained in the psychopedagogical reports of the students.”

He states that “The guide does not analyze the educational function of such treatment, as it is obvious.”

He indicates that the academic file must include pedagogical and medical reports when appropriate, in accordance with the regulation of the academic file established in Article four of Order ECD/711/2015 of 15/04, which establishes the elements and characteristics of the official evaluation documents of primary education for the management scope of the Ministry of Education, Culture, and Sport.

3- In the information of the form regarding express consent, there is no mention of the option to withdraw it; please explain the reason.

He responds by reiterating the content of the existing clause in the "informative clause on Data Protection and consent" forms, in evidence 3 A and 3 B.

4- Reason why in the letter to the interested party dated 31/07/2021, in response to the exercise of their right of 12/07/2021 and following the provisions of the RAT of "EA Management of Educational Centers," it refers to compliance with a mission carried out in the public interest as a basis for legitimacy, and in the "informative and consent form for the collection of personal data" in the CMNSL, this basis is omitted.

The Director of the School responds that "The response to the interested party is considered a clarification or reasoning. However, a form is understood to have a functional purpose, and this is how it was considered."

5- Reason why they respond to the previously mentioned exercise of rights considering that the GOOGLE WORKSPACE for education established during the pandemic in the CMNSL responds to the legitimacy basis of Article 6.1.e) of the GDPR, and yet they maintain that for the creation of student accounts, a consent document was requested from the parents.

The Director of the School responds that:

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"The response to the interested party was considered a clarification or reasoning. However, a form is understood to have a functional purpose."

6-Copy of the Document, printed or form that was required at the beginning of the 21-22 school year regarding informative clauses about the use of Google Workspace and informative clauses on Data Protection and consent that had to be returned even if a refusal was indicated. Date it was sent to the parents. Documentation of the lack of consent for the use of GOOGLE WORKSPACE from the claimant and the date on which the accounts (...) of the claimant were deactivated.

It responds that it is found in EVIDENCE 2, recalling what was stated, it is a form that was delivered to families in September 2021, titled "Direction," "Dear Families," and informs about the use of GW, the tools it contains, and that an account will be created for their child, to complete tasks, communicate with their teachers, and acquire digital skills through GOOGLE as a provider, necessary for proper school monitoring and provision of educational services. It is indicated that the information must be read and "sign below to indicate that you have read this notification and that you have understood the information." On a second page, it states "I have read and understand the information provided by the School regarding the creation and maintenance of a GW account assigned to my child and for Google to collect, use, and disclose information about them, for the purposes described in this message." At the end of the page, it states "notification of GOOGLE W for Education addressed to parents and guardians" and that: "This message describes what type of personal information we provide to GOOGLE...". It then indicates the services that can be accessed, the notices, and the privacy policy of GW, the personal information that GOOGLE collects, and how it is used. It also states that the services are provided in accordance with the GW contract, the "terms," and the "Addendum on data processing," indicating the links, although it is noted that "the contracting has been carried out based on an agreement signed by the Community of Madrid, which guarantees its security."

j) It is requested to provide a copy of the audit from the DPD EA, 29/09/2021, supported by the Central Office of Data Protection of MINISDEF and the Office of the Data Protection Delegate at MINISDEF on the points of:

- implementation of GOOGLE WORKSPACE for education for the 21-22 school year
- situation of data collection clauses for the mentioned school year in the enrollment form and in the medical data collection form.

No evaluation or analysis of procedures or actions and value judgments on data protection matters are provided, but rather a copy of the points that were considered in a meeting as the most notable:

"3.1.1. Information on the processing of personal data at the Center

Students and parents are informed about the processing of personal data at the Center, and an informative document with the acceptance and consent clauses is provided, which must be returned signed.

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Most of them return it signed, although there are cases where they express their disagreement and do not sign it, and others where they simply do not respond or return it.

The question that arises is: can students be denied their place in the school if they do not accept the terms regarding data protection?

The representative of the ODPD proposed that those who do not respond can be sent a certified letter with acknowledgment of receipt.

He also proposed that, to begin with, those who do not respond can be sent a certified letter with acknowledgment of receipt. This way, at least there will be proof that they have received it.

In addition to this, he proposed that a query be raised with the AEPD regarding whether a place can be denied to those who do not show agreement with the processing of personal data at the Center. The School is instructed to make a request and elevate it through the appropriate channels. From the EMA, it should be sent to the ODPD, with copies to the OCPD and the Legal Advisory of the Defense."

"3.1.2. Use of the platform "Google Workspace for Education" for remote teaching.

During the 2020-2021 school year, the school used the platform "Alexia Educational Suite" from the company Educaria Euro S.L.U. for remote teaching. This platform is authorized by the Autonomous Community of Madrid for use in educational centers.

The School, after analyzing how to approach Information and Communication Technologies (ICT) in the educational process, decided to implement the "Workspace for Education" platform from the company Google, LLC for the 2021-2022 school year, presenting the reasons in favor of the choice, and the contraindications expressed by ADAPTALIA, regarding:

"Although Google is a company from the USA, the contract is established with Google Ireland, its subsidiary based in Europe. The data contained in Google's servers may be replicated to other servers located in countries belonging to the European Union.

However, the clauses of the contract indicate that backups can be made to all Google servers, which can be located anywhere in the world, where the security requirements applicable to EU countries do not necessarily have to be met."

"There is a doubt as to whether it is acceptable for backup data to be sent to servers anywhere in the world."

According to the representative of the ODPD, Google and Educaria are Data Processors of the Air and Space Force (EA), as they handle data belonging to the EA. In relation to the AEPD, a Data Processing Agreement with both must be executed."

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k) Copy of the report prepared by GRUPO ADAPTALIA at the request of the CMNSL dated 13/08/2021, noting that it is different from the report that the same entity signed on 1/01/2022 titled "Proportionality Analysis."

In the submitted copy, titled "RGPD-LOPDGDD audit report," it is noted:

- According to the index, it covers all aspects of data processing, information, principles, etc. The processing activities are detailed.
- The participation of any representative from the Data Protection Delegation is not listed, although a

“data protection coordinator” is mentioned, who is possibly from the School.

- It is stated that the data controller of the CMNSL as an educational institution is the Ministry of Defense itself.

- Regarding the bases of legitimacy, it indicates: “Currently, COLEGIO MENOR NUESTRA SEÑORA DE LORETO has identified a basis of legitimacy for each of the purposes of the processing. Furthermore, the identified basis of legitimacy is correct.”

- As for data processors, it indicates that “the data processors employed by the Center could not be identified” and “it has not been identified that international transfers occur in the processing activities of the CMNSL,” although it adds:

“The center is evaluating the possibility of using Google Workspace for education based on an agreement signed by the Community of Madrid. In this processing, international data transfers will occur, which are secured through Standard Contractual Clauses approved by the European Commission, so they will initially comply with the adequate guarantees set by the GDPR.

It accompanies recommended measures for each section.

No mention is made of any aspect regarding data processing with the use of the GW computer tool. Subsequently, it sends a partial report from the School of the measures adopted that correct the deficiencies or address the situation explaining the situation. In some respects, it refers to the fact that at the end of August, information is provided to the students, taking that date as a reference in the preparation of the report in which no information is expressly listed.

l) The inquiry made by the MINISTRY OF DEFENSE to the AEPD is included, entry 7/10/2021 (composed of three pdf files) in which the use of GW under the agreement signed with GOOGLE by the Autonomous Community of Madrid on 10/06/2021 published in the BOCM on 24/06/2021 is indicated, stating in the terms of the Inquiry that “From the aforementioned Agreement, it is observed that backups may be stored in a country outside the European Economic Area. In order to provide legal security to the educational center, a response from the AEPD is requested.”, with a response from the General Subdirectorate of Promotion and Authorizations dated 15/11/2021.

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m) It is incorporated, obtained from GOOGLE:

- https://workspace.google.com/intl/es/terms/education_terms.html which refers to the -Terms- of GOOGLE WORKSPACE FOR EDUCATION, version 19/04/2023.

- The document provided by the respondent in their allegations “DATA PROCESSING ADDENDUM CUSTOMERS” which is located at the URL:

<https://cloud.google.com/terms/data-processing-addendum>, translated into Spanish: Apéndice de procesamiento de datos en la nube (clientes).

THIRTEENTH: On 24/07/2023, a resolution proposal was issued, with the following text:

“FIRST: That the Director of the Spanish Agency for Data Protection imposes on the MINISTRY OF DEFENSE, (AIR AND SPACE FORCE ***POSITION.1-) COLEGIO MENOR NUESTRA SEÑORA DE LORETO) with NIF S2801407D, a warning sanction for each of the infringements of the GDPR of the articles:

- 28, in accordance with article 83.4 a) of the GDPR, classified as serious for prescription purposes in article 73.k) of the LOPDGDD.

- 13, in accordance with article 83.5 b) of the GDPR, classified as minor for prescription purposes in article 74.a) of the LOPDGDD.

SECOND: That the Director of the Spanish Agency for Data Protection proceeds to impose on the MINISTRY OF DEFENSE, (AIR AND SPACE FORCE ***POSITION.1- COLEGIO MENOR NUESTRA SEÑORA DE LORETO), with NIF S2801407D, within the timeframe determined, the adoption of the necessary measures to adapt the information regarding the processing of data in the “informative clause on Data Protection and consent” to the personal data protection regulations, with the scope

expressed in the Rights Foundations of this resolution proposal.”

FOURTEENTH: On 4/08/2023, the respondent states:

- The variations indicated by the AEPD in the “informative clause on data protection and consent” have been made. A copy is provided in evidence 1 which contains the reformulation of the “informative clause on data protection and consent” in which the legitimizing bases are specifically related to each of the purposes, citing articles 6.1.a), 6.1.b), and 6.1.e) of the GDPR.
- Regarding the infringement of article 28 of the GDPR, it explains the anomalous situation caused by the COVID-19 pandemic, and the search for tools in order to guarantee the right to education among students through remote teaching, having signed in June 21 an Agreement between the Education Department of the CCAA of Madrid and GOOGLE for the use of the tool, having a valuation report of the GW tool carried out on 13/08/2021 regarding proportionality and noting that, initially, the complaint was archived on 19/01/2022.

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It was unknown that the online subscription to the GW product agreement was insufficient and that a data processing agreement had to be executed.

- It is estimated that since there were no "material consequences or damages arising from the lack of formalization of the data processing agreement," and the deficiencies were remedied, and the use of the application ceased before the initiation agreement, the imposition of a sanction is disproportionate.

FIFTEENTH: From the actions carried out in the present procedure and the documentation in the file, the following has been established:

PROVEN FACTS

1. The Colegio Menor Nuestra Señora de Loreto (CMNSL) is affiliated with the Ministry of Defense through the Patronato de Huérfanos del Ejército del Aire “Nuestra Señora de Loreto.” According to the respondent, the data controller for the data processed by the Colegio is ***POSITION. The CMNSL is not a Public School.

2. On 5/7/2021, for the 21/22 academic year, the claimant, with (...) children (...) at the CMNSL, received an email from the school regarding the implementation at the beginning of the school year of the electronic resources provided by Google through the "GOOGLE WORKSPACE FOR EDUCATION" (GW) platform, involving the creation of an email address with the name of each student in their Gmail account, under the domain colegiomenorloreto.es.

The respondent indicates that to activate the email of each user/student for educational purposes, they requested authorization from the families, and it was only upon receiving this authorization that the students' emails were created under the domain: @colegiomenorloreto.es. It is established that the claimant signed on 19/11/2021 a merely informative note from the school about what GW is, the tools it includes, and "the use for completing tasks, communicating with their teachers, through a provider contracted by the School, necessary for proper academic monitoring and a correct provision of educational services." The document includes a checkbox to mark: "I have read and understand the information," to which the claimant handwritten added: "I do not understand," and "I do not agree with the transfer of data to GOOGLE or any of its subsidiaries or affiliates," understanding that the respondent interpreted this as not authorizing the use of the system and rejecting its use.

It is established that on 12/07/2021, the School sent the claimant an email titled: "User and password for the GW platform," in which it is noted that Google welcomes the creation of two accounts at colegiomenorloreto.es, for (...) of the claimant, inviting them to "log in to the GOOGLE account to access the services." The user is listed as nombre.primerapellido@colegiomenorloreto.es, along with a password. It is not established that, since that creation, the account had been used.

The respondent stated in the transfer that the GOOGLE WORKSPACE accounts (...) of the claimant were not activated and that no classes were given with GW nor was any use made of it.

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of its tools. It adds that, upon receiving the first welcome email, with username and password, users were required to set a new password that only they would know, as a procedure to "make its creation effective."

According to the respondent's evidence, the informational document regarding the use of GW and what it entails with the "I have read and understand the information" was provided to families in September 2021.

3- The claimant exercised their right of access and opposition to the processing of data through the GW tool before the DPD of the Ministry of Defense on 12/07/2021 (annex 2 of the complaint).

Furthermore, in said writing, various issues regarding data collection information are raised.

4- The claimant received a response via email on 2/8/2021, indicating that the GW solution would be used in the 21/22 school year to address possible contingencies arising from COVID-19 and that prior to the inclusion of data in said platform, express authorization would be requested from the parents or guardians of the students (...), although what was addressed was to inform about the application, without any document showing consent for the use of data from the application in accordance with the GDPR and the LOPDGDD.

5- The respondent submitted a query to the AEPD on 7/10/2021, indicating the use of GW under the Agreement signed by the Education Department of the Community of Madrid and GOOGLE on 10/06/2021. The AEPD responded on 15/11/2021 that the provision of cloud computing services implied the obligation to sign a contract or another type of legal act in accordance with the law, with the provisions of Article 28 of the GDPR.

The respondent states that, after receiving this response, they temporarily suspended the use of GW, with writings from the School under their command dated 2/12/2021 regarding the problems of not having a platform to conduct classes remotely in the event that students were confined. Meanwhile, on 13/01/2022, it is evidenced by a writing sent by the School to the LOPD office of the EA that the School hired a consultant to analyze the standard contractual clauses of GOOGLE and the international transfers, informing that they would return to use GW the following week.

It also states that, at the end of May 2022, the use of the platform at the School was ceased and it has not been used again.

The respondent stated that in the 20/21 school year, they did not use the GW platform.

7- When requested for evidence of the agreement signed with GOOGLE for the implementation of the GW service, it was responded that the contract is signed by the School online, accepting the terms of use. The GW platform, as responded in evidence, began to be used in September 2021 at the CMNSL.

8- The legitimizing basis for the processing of data by the respondent, as stated in their response to the claimant on 2/08/2021 and which applies to the processing of GW data, is Article 6.1.e) of the GDPR, "necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller," consolidated through the right to education in Article 27 of the Spanish Constitution and Organic Law 2/2006, of 3/05, on Education, to facilitate the C/ Jorge Juan, 6

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Digitalization of education and access to it for all citizens during the COVID-19 health crisis.

9- The Registry of Treatment Activities (RAT) of the Ministry of Defense, which includes information regarding educational centers, referred to as: "EA. Management of Educational Centers," version June 22, describes its PURPOSES (management of places, enrollments and collections, academic history, academic guidance and support, health guarantee, complementary tasks), without expressly mentioning the educational function.

As Legal Bases, it states: "Article 6.1b) of the GDPR: processing necessary for the performance of a contract in which the data subject is a party or for the implementation at the request of the data subject of pre-contractual measures" and based on the essential public service of education, in Article 6.1 e) of the GDPR: "processing necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller," citing various legal norms, and "explicit consent regarding matters related to minors," also without detailing which treatments would be related.

10- The respondent, in response to the transfer from the AEPD on 12/7/2021, provided a copy in evidence 5 of the "updated information clause on Data Protection and consent that is delivered during the enrollment period to students, highlighting:

a) As the data controller, the Ministry of Defense - Air and Space Force is listed. However, both in the registry of treatment activities and statements from the respondent, the data controller is

***POSITION.1.

b) It mentions that its treatment activities encompass various purposes, including the educational function, management of enrollment, school records, and medical data. For the purposes of legitimizing the processing, all purposes are framed as educational function, informing that Article 6.1.c) of the GDPR would apply: "the processing is necessary for compliance with a legal obligation to which the data controller is subject."

c) For treatment activities that require consent (extracurricular activities or use of image/voice in events and activities), there is no information regarding the possibility of withdrawing consent and its effects. After the initiation of the procedure, the respondent has provided a modification of the "information clause on data protection and consent," introducing the specificity of the designation of the data controller, following the definition of the various purposes. After receiving the proposal, the respondent has adjusted each legitimizing basis to each purpose, integrating as a legitimizing basis the public interest mission, Article 6.1.e) of the GDPR concerning the educational function and the option to withdraw consent in treatments based on this basis.

LEGAL GROUNDS

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In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Article 4 of the GDPR, "Definitions," paragraph 1, defines "personal data" as "any information relating to an identified or identifiable natural person (<>); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;" Additionally, Article 4 of the GDPR provides in paragraph 2 a legal concept of "processing," defined as: "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure or destruction."

The terms "data controller" and "data processor" are defined in Articles 4.7 and 4.8 of the GDPR as

follows:

"Data controller or controller: the natural or legal person, public authority, agency, or other body that, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of processing, the controller or the specific criteria for its appointment may be provided by the law of the Union or of the Member States."

"Data processor or processor: the natural or legal person, public authority, agency, or other body that processes personal data on behalf of the controller."

When educational institutions need to collaborate with other individuals or entities that are not part of their organization to fulfill their functions, for example, for catering services, medical services, transportation, or for carrying out extracurricular activities, or the use of an educational platform as in this case, these individuals and entities also process the personal data of the students to provide their services.

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us and their teachers, but they do so on behalf of the data controller, that is, the educational institution or the educational administration. The companies that provide these types of services are considered data processors in relation to the personal data they handle.

This relates to the designation and legal position of the parties that receive the data, which are described in the definitions of Article 4.9 and 10 of the GDPR, distinguishing:

"9) 'recipient': the natural or legal person, public authority, service, or other body to which personal data are communicated, whether or not it is a third party. However, public authorities that may receive personal data in the context of a specific investigation in accordance with Union or Member State law shall not be considered recipients; the processing of such data by these public authorities shall be in compliance with the data protection rules applicable to the purposes of the processing;

10) 'third party': a natural or legal person, public authority, service, or body other than the data subject, the data controller, the data processor, and the persons authorized to process the personal data under the direct authority of the data controller or the data processor;

The processing assignment that will be examined in another section does not imply, as a result, a transfer or communication of data to a third party, as long as the requirements established by the regulations: GDPR and LOPDGDD are met, containing the guarantees for the development of that relationship. In the processing assignment, the processing is carried out on behalf of a third party and must be documented in writing or in another form that allows for the proof of its establishment and content, without it being sufficient to prove that a legal relationship exists between the parties (controller and processor). The aforementioned contract or act must have a minimum content.

A detailed examination with examples of the responsibilities and roles of these actors can be found on the website with the following references:

- Opinion 1/2010 on the concepts of data controller and data processor adopted on 16/02/2010, WP 169, and
- Guidelines 7/2020 on the concepts of data controller and data processor in the GDPR, version two, adopted on 7/07/2021.

III

As a starting point, it should be noted that the twenty-third additional provision of Organic Law 2/2006, of 3/05, on Education, generally establishes the basic principles regarding the processing and communication of personal data within its scope of application, by providing:

"1. Educational institutions may collect the personal data of their students that are necessary for the exercise of their educational function. Such data may refer to the origin and family and social environment, to personal characteristics or conditions, to...

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development and results of their schooling, as well as any other circumstances whose knowledge is necessary for the education and guidance of the students.

2. Parents or guardians and the students themselves must collaborate in obtaining the information referred to in this article. The enrollment of a student in an educational institution will imply the processing of their data and, where applicable, the transfer of data from the institution where they were previously enrolled, under the terms established in the legislation on data protection. In any case, the information referred to in this section will be strictly necessary for the teaching and guidance function, and it may not be processed for purposes other than educational without express consent.

3. In the processing of student data, technical and organizational standards will be applied to ensure their security and confidentiality. The teaching staff and other personnel who, in the exercise of their functions, access personal and family data or data affecting the honor and privacy of minors or their families will be subject to the duty of confidentiality.

4. The transfer of data, including reserved data, necessary for the educational system, will preferably be carried out electronically and will be subject to the legislation on personal data protection. In the case of data transfer between Autonomous Communities or between them and the State, the minimum conditions will be agreed upon by the Government with the Autonomous Communities, within the framework of the Sectoral Conference on Education.”

One of the purposes of education is mentioned in Article 2.1.I) of the aforementioned Law, which states:

“I) The training to ensure the full integration of students into the digital society and the learning of safe use of digital media that respects human dignity, constitutional values, fundamental rights, and, in particular, with respect to and guarantee of individual and collective privacy.”

The LOPDGDD indicates.

- Article 83:

“1. The educational system will guarantee the full integration of students into the digital society and the learning of a safe and respectful use of digital media with human dignity, constitutional values, fundamental rights, and, in particular, with respect to and guarantee of personal and family privacy and the protection of personal data. Actions taken in this area will be inclusive, particularly concerning students with special educational needs. Educational administrations must include in the design of the block of freely configured subjects the digital competence referred to in the previous section, as well as the elements related to risk situations arising from the inadequate use of ICT, with special attention to situations of online violence.

2. The teaching staff will receive the digital competencies and the necessary training for the teaching and transmission of the values and rights referred to in the previous section.”

On the other hand, the communication from the Commission to the European Parliament, the Council, the Committee

European Economic and Social Committee and the Committee of the Regions on the DIGITAL EDUCATION ACTION PLAN, dated 17/01/2018, has the following action priorities:

1. Make better use of digital technology for teaching and learning.
2. Develop relevant digital skills and capacities for digital transformation, and
3. Modernize education through foresight and better data analysis.

“Spain Digital 2025” is the Agenda for the digital transformation of Spain, a strategy that encompasses a set of measures articulated around strategic axes aligned with the digital policies set by the European Commission. Among the measures is to equip students with advanced digital skills and to

promote digital vocations, with initiatives such as the NATIONAL DIGITAL SKILLS PLAN.

The tools and systems for learning supports in the field of digital educational content are addressed in Article 111 bis of the aforementioned Organic Law 2/2006, titled: "information and communication technologies," and establishes that educational administrations and the management teams of educational centers shall promote information and communication technologies in the classroom, "as an appropriate and valuable teaching medium to carry out teaching and learning tasks." And in its point 6, it states:

"The Ministry of Education, Culture and Sport will develop, after consulting the Autonomous Communities, a common framework of reference for digital teaching competence that guides the ongoing training of teachers and facilitates the development of a digital culture in the classroom."

When initiating activities that involve the processing of personal data, the data controller must always take time to consider what would be the appropriate legal basis for the intended processing, considering the specific and express purposes and the context of the processing, which in this case of distance education arose due to the COVID-19 pandemic.

As a general rule regarding the legitimizing basis for the processing of public entities, Recital 43 of the GDPR states that it is unlikely that public authorities can rely on the basis of data processing on the consent of the data subject, since as a public authority, it is assumed that there is a clear power imbalance in the relationship between the data controller and the data subject. It is also clear in most cases that the data subject will not have realistic alternatives to accepting the processing (terms) of this controller. This does not mean that the use of consent as a legal basis for data processing by authorities is completely excluded within the legal framework of the GDPR, but rather that it has a limited scope. Thus, it is necessary to seek the lawful roots of the processing in a legitimizing basis, among which Article 6.1 of the GDPR indicates:

"a) the data subject has given consent to the processing of their personal data for one or more specific purposes;

b) the processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;

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c) the processing is necessary for compliance with a legal obligation to which the data controller is subject;

d) the processing is necessary to protect vital interests of the data subject or of another natural person;

e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;

f) the processing is necessary for the purposes of legitimate interests pursued by the data controller or by a third party, provided that such interests are not overridden by the interests or fundamental rights and freedoms of the data subject which require the protection of personal data, particularly when the data subject is a child. The provision in paragraph f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions."

The definition of consent is established in Article 4. 11) of the GDPR, which states:

"'consent of the data subject': any freely given, specific, informed and unambiguous indication of the data subject's wishes by which he or she, by a statement or by a clear affirmative action, signifies agreement to the processing of personal data relating to him or her";

Regarding the second paragraph of the twenty-third additional provision of Organic Law 2/2006, if a student joins the organization of the educational center, he or she is subject to its rules and guidelines, in this case for educational purposes, the collection of their data, for example, in the enrollment form and their registration at the center, would not respond to the scheme of processing based on consent, but rather to a relationship between the parties that includes elements pointed out in the Education

Law, and in which other types of processing may subsequently arise, in which, according to their purpose, there must be an adequate legitimizing basis for such processing.

Regarding the promotion of digital competence, it is a public interest mission to be considered in the processing schemes, as indicated by Article 6.1.e) of the GDPR, with the specific requirements of the aforementioned Education Law and the guarantee of affected rights in its implementation concerning data protection.

Consent to the processing of data usually occurs within the framework of a free provision or in the acceptance of goods or services, in which both parties have autonomy of will. This implies the control of the data by its owner under terms in which a genuine choice is offered regarding accepting or declining the offered terms, without suffering detriment, which would differ from what could be a valid legitimate basis for the development of educational functions or purposes, promoted by public authorities as suitable and necessary interventions to fulfill the pursued objectives, which link to Organic Law 2/2006 of 3/05, 2006 (LOE) as a public interest mission that establishes the development of digital competencies and information technologies.

In the present case, the use of computer applications as a purpose connected with education and the promotion of new technologies presupposes that new data such as the address of C/ Jorge Juan, 6
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The email service of GOOGLE and the derivatives of its uses in the different tools could find its legitimizing basis in Article 6.1.e) of the GDPR.

Regarding the question of whether educational centers can conduct classes and administer exams online without the consent of the interested parties, the AEPD states on its website:

<https://www.aepd.es/es/preguntas-frecuentes/16-salud-y-coronavirus/1-coronavirus/FAQ-1610-puede-n-los-centros-educativos-impartir-clases-y-realizar-examenes-online-sin-el-consentimiento-de-los-interesados>:

“The processing of data that may involve both the provision of classes and the administration of online exams in formal education does not require the consent of the students, or their parents or guardians, as it is legitimized by the performance of a mission of public interest such as the educational function, provided for in a legal norm, the Organic Law of Education (D.A. 23^a); nor does it require the consent of the teaching staff, which is due to the fulfillment of their contractual or statutory relationship to exercise the educational function.

Providers of technological means (platforms, applications, etc.), to the extent that they process personal data, are processors of the data that they carry out precisely on behalf of the controller: the educational centers and the educational administrations, depending on the ownership of the educational center. They must proceed with their selection and contracting with the diligence required by the General Data Protection Regulation (Article 28), for which they have the advice of the data protection officer, whose designation is mandatory for all educational centers that offer teachings at any of the levels established in the legislation regulating the right to education (Article 34.1.b of Organic Law 3/2018 on personal data protection and guarantee of digital rights, LOPDPGDD).

However, even if there could be this legitimizing basis for processing, it should be accompanied not only by the subject authorized to implement the aforementioned legitimizing basis, the data controller, but it must also respect the principles and guarantees of the law established by the GDPR and the LOPDPGDD, among which are the duty of information in the collection of data as rights of the interested parties and the general obligations of the data controller when processing data through a data processor, Chapter IV, Section 1, Article 28 of the GDPR as a guarantee and protection of the rights of the interested party.

IV

GOOGLE WORKSPACE for education, GW, formerly known as G-SUITE for education, is an adaptation of applications and services based on the cloud hosted on GOOGLE CLOUD, using servers in remote locations in a flexible manner, through infrastructure owned by GOOGLE and available from all devices with internet connection, offering access to database solutions, email, or any

type of applications according to the services usually included in the different editions of the product. GW consists of a platform in which all of Google's work and productivity products are integrated into a single system that allows for improved communication and management of activities among different collaborators.

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Users can access the different tools through a browser or applications installed on mobile phones and devices that have internet access. GW allows for collaborative editing of documents and instant communication from any device and location, gaining prominence following the onset of the pandemic as a communication tool in educational centers due to the absence or insufficiency of the means available to those responsible for data processing.

GW has several editions, with the basic one being: GOOGLE WORKSPACE FOR EDUCATION FUNDAMENTALS, which is free for schools and universities (there are other paid versions).

It is stated in the GOOGLE-CCAA Agreement of Madrid, BOCM of 24/06/2021, clause 1.3, that the data controller must have an account to contract and use the service. As for "Verification to use the Services. The Client must verify a Domain Email Address or a Domain Name to use the Services. If the Client does not have a valid permission to use that Domain Email Address or does not own or control that Domain Name, Google will have no obligation to provide the Services to the Client and may delete the Account without prior notice." The application and provision of the service to public educational centers dependent on the Ministry, as contemplated in various clauses of the Agreement, implies that the Ministry operated with its own domain and email address, meaning it did not use the domain used by CMNSL, nor did CMNSL use that of the CCAA of Madrid, which is evidence, among many others, that the Agreement was not applicable to CMNSL, corroborated by the Legal Advisory of the EA.

The mechanism was mentioned, for example, in the resolution of PS/000286/2021, which analyzes the aforementioned Agreement and its terms of service, resulting in the fact that once the domain is available, the client can create their account (client account), which will include that of the administrator, and email accounts would be created for the teaching staff and students (end users). The account administrator manages the creation of accounts and other options through the "admin console," also determining the services to which end users will have access. The client account is associated with the services specified in the agreement signed with GOOGLE, an agreement that is usually carried out in the online contracting process, "online agreement," which would include the general terms and an "amendment of data processing" that establishes the rights and obligations of the parties concerning the processing and security of the client's data under the agreement, as well as the "standard contractual clauses" that, among other elements, must contain the guarantees for the processing of international transfers. Once the conditions are accepted, GW sends a welcome message.

The services available in the package include, among others, Gmail, a web email service, formed in this case with the name.surname@colegiomenorloreto.es - these would be the accounts of the end users, hosted by Google in the cloud, and configured by the Client (data controller) through the Services so that an End User can use the Services. With the creation of the account in GW, using a proprietary domain, a user and password are assigned to each student/teacher that would allow each of them to log into the GW solution, with email being one of the tools whose use derives from it.

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Furthermore, it offers, depending on the edition subscribed, a number of services that usually comprise a package including the core services and the additional services.

In the present case, it has been indicated in the third foundation that the use of software applications as a means connected with education and the promotion of new technologies would find its justification as a legitimizing basis in Article 6.1.e) of the GDPR. However, the existence of this legitimizing basis for processing should be accompanied in its implementation by the subject authorized for it, and take into account the principles and guarantees of the law established by the GDPR and the LOPDGDD. The GDPR states in its Article 5.2: "The data controller shall be responsible for compliance with the provisions of paragraph 1 (principles of processing, including how data must be processed, 'lawfully, fairly, and transparently') and shall be able to demonstrate it ('proactive accountability')." This implies that the aforementioned controller is the one who assumes their own responsibility by directing and coordinating the matter, including that of the personnel providing services to them.

In compliance with this provision, and without containing a specific list of concrete activities to be carried out regarding the tasks to demonstrate compliance, under the principle of proactivity, appropriate technical and organizational measures must be deployed in order to comply with this principle (Article 24 of the GDPR), which includes, among others, the ability to demonstrate compliance.

Among the tasks that can be cited, the following can be understood to be included, without the intention of being exhaustive:

- Documenting the legitimizing basis for data processing in order to demonstrate which one is being applied in particular. In this case, prior to the launch of the application, it should have been assessed:
 - ☐ Whether it is necessary or not, in the sense that there is no other less intrusive measure to achieve such a purpose with equal effectiveness, as the activity could be carried out annually. The term necessity should not be confused with usefulness, but rather whether the processing is objectively necessary for the purpose.
 - ☐ Whether it is suitable or appropriate in the sense that the measure is capable of achieving the proposed objective, and
 - ☐ Whether its implementation is balanced or proportionate, deriving more benefits or advantages for the interest than harms to other conflicting goods or values.

All of this considering the location of data in the cloud, on servers, and that the data subjects are minors in the context of an application like GOOGLE WORKSPACE, whose terms of information are very extensive and complex.

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The concepts of data controller and data processor are not formal but functional and must address the specific case, the concrete activities in a specific context. The data controller is defined as such from the moment they decide the purposes and means of the processing, and this status is not lost by allowing the data processor a certain degree of discretion. This is unequivocally expressed in the Guidelines 07/2020 of the European Data Protection Board (EDPB) regarding the concepts of data controller and processor under the GDPR:

"A data controller is one who determines the purposes and means of the processing, that is, the why and how of the processing. The data controller must decide on both purposes and means. However, some more practical aspects of implementation ('non-essential means') can be left to the data processor. It is not necessary for the controller to actually have access to the data being processed to qualify as a controller."

The Article 29 Data Protection Working Party (WP29) in its Opinion 1/2010 on the concepts of 'data controller and processor' clarifies who should be responsible for compliance with data protection rules and how data subjects can exercise their rights in practice. The concept of data controller is also essential for determining the applicable national legislation and for the effective exercise of the supervisory tasks conferred on data protection authorities. Recital 79 of the GDPR reminds us that: "The protection of the rights and freedoms of data subjects, as well as the responsibilities of controllers

and processors, including with regard to the supervision by the supervisory authorities and the measures taken by them, requires a clear allocation of responsibilities under this Regulation, including in cases where a controller determines the purposes and means of processing jointly with other controllers, or where processing is carried out on behalf of a controller.”

Currently, the Guidelines 07/2020, adopted on 2/09/2020 and revised on 7/07/2021, by the European Data Protection Board (EDPB) -an independent European body whose objectives are to ensure the consistent application of the GDPR in the European Union and to promote cooperation among the data protection authorities of EU Member States- regarding the concepts of data controllers and data processors under the GDPR, state that the concepts of controller and processor under the GDPR have not changed compared to Directive 95/46/EC and that, in general, the criteria for attributing the different roles remain the same (paragraph 11). It reiterates that these are functional concepts, aimed at assigning responsibilities according to the actual roles of the parties (paragraph 12), which implies that in most cases, the specific circumstances of the case must be considered (case by case) based on their actual activities rather than the formal designation of an actor as "controller" or "processor" (for example, in a contract), as well as being autonomous concepts, whose interpretation must be carried out under the European data protection regulation (paragraph 13), and taking into account (paragraph 24) that the need for a factual assessment also means that the role of a data controller does not derive from the nature of an entity that is processing data but from its activities.

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concrete in a specific context, so the same entity may act simultaneously as the data controller for certain data processing operations and as the processor for others, and the qualification as controller or processor must be evaluated with respect to each specific data processing activity.

In this case, it will be assumed that the data controller, according to the information that is repeatedly found in the file, is not the School, but the ***POSITION.1.

When service provision contracts are signed, as in this case where the data processing of students and teachers of the School will be affected in order to continue classes due to the pandemic, it is that data controller who must sign or at least authorize the conditions under which the processing will be carried out, determining the means and purposes.

The Guidelines 7/2020 of the EDPB state:

“In terms of determining the means, a distinction can be made between essential and non-essential means. Essential means are traditionally and inherently reserved for the data controller. These must be mandatorily determined by the data controller, although the determination of non-essential means can also be left to them. Essential means are closely linked to the purpose and scope of the processing, such as the type of personal data processed (‘What data will be processed?’), the duration of the processing (‘How long will the data be processed?’), the categories of recipients (‘Who will have access to the data?’) and the categories of data subjects (‘To whom do the processed personal data belong?’). In addition to being related to the purpose of the processing, essential means are closely linked to the question of whether the processing is lawful, necessary, and proportionate. Non-essential means are related to more practical aspects of the processing itself, such as the choice of a particular type of hardware or software or the decision on the details of security measures, which can be left to the data processor.”

Each end user: student, teacher, to use GW has an email address associated with the digital services created by the School through which they access the digital tools. To access the services and log in to any of the Google applications, they access using the aforementioned assigned email account, each with their username and password.

The services and configurations are carried out from the “admin console,” an online tool and console that Google makes available to the client to manage the services. This would include security options in the configuration of accounts, mailboxes, and messages.

The client account is hosted by GOOGLE, as well as the data, communications of the end users, such

as those stored in text documents or in DRIVE.

The digital services of GW for education are thus linked to email accounts associated with their users, which are either directly identifiable by the designation of their address or may be identifiable, which will evidently imply a very specific data processing because it is developed through a service provider that offers various educational management tools. A service provider that uses its “cloud computing” services.

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Article 28.1 of the GDPR states: “When processing is to be carried out on behalf of a controller, the controller shall choose only a processor that provides sufficient guarantees to implement appropriate technical and organizational measures, in such a way that the processing will be in compliance with the requirements of this Regulation and will ensure the protection of the rights of the data subject.”, and paragraph 3: “The processing by the processor shall be governed by a contract or other legal act under Union or Member State law, which binds the processor to the controller and establishes the subject matter, duration, nature and purpose of the processing, the type of personal data and categories of data subjects, and the obligations and rights of the controller...”

The aforementioned guidelines 7/2020 indicate:

“Any processing of personal data by a processor must be governed by a contract or other legal act that is in writing, including in electronic form, and that is binding. The controller and the processor may decide to negotiate their own contract, including all mandatory elements, or rely, in whole or in part, on standard contractual clauses.”

Unwritten agreements (regardless of how comprehensive or effective they may be) cannot be considered sufficient to meet the requirements established in Article 28 of the GDPR.

Furthermore, the contract or other legal act under Union law or the law of the Member States must be binding on the processor with respect to the controller, meaning it must establish binding obligations for the processor under EU law or the law of the Member States. It must also establish the obligations of the controller. In most cases, there will be a contract, but the Regulation also refers to “other legal acts,” such as a “national law” or national law (primary or secondary) or another legal instrument. If the legal act does not include all the minimum required content, it must be supplemented with a contract or other legal act that includes the missing elements. In this sense, whether it is an online contract or a collaboration agreement, the fundamental aspect is the link between the parties. The mere establishment of the collaboration agreement is therefore not constitutive of the contract or legal act of processing unless it is complemented with the elements that form the content and are included in Article 28 of the GDPR.

In this case, as can be inferred from the background of this resolution, the “COLLABORATION AGREEMENT of 10/06/2021, between the Community of Madrid (Department of Education and Youth) and Google Ireland Limited” does not apply to the data communication made by the School to Google since the Colegio Menor Nuestra Señora de Loreto (CMNSL) is a private school that depends on the Ministry of Defense and whose data controller is ***CARGO.1.

As a starting point, it should be noted that the provision of services by GOOGLE involves an online agreement, in which one party is the data controller and GOOGLE is the processor. The acceptance of the general conditions of processing with GOOGLE and the addenda that are part of the online contracting form the basis and the beginning of the relationship between the parties, for which the School must provide a series of data and accept a series of conditions.

That the usage agreement signed for the GW solution, whether free or not, does not preclude that in any case the functionality of the software and applications for the use of GW requires the introduction of...

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processing of personal data of teachers and/or students, with a purpose based on the creation of an account to configure the service within the general terms of the contract.

The individuals and entities that provide educational services using a learning platform with the use of educational software licenses process the personal data of students and teachers, under the responsibility of the data controller.

This data controller is characterized, according to Article 4.7 of the GDPR, because:

- It is the one who establishes the purpose or outcome of the processing, the aims of the processing, and the means of processing, the extent and scope of the tools to be used.
- It determines which individuals' data is processed.
- Decisions are made as part of or as a result of the processing.

Companies that provide such services (Cloud Computing, educational platforms, data hosting) offer educational institutions structured software applications known as "learning platforms" accessible via the Internet, which may consist of different types of software. Therefore, in this case, the essence of the use of the application is the consideration of the service provider as a data processor on behalf of the controller.

As data that is processed by the holder of a software application, the respondent should have implemented, as the data controller, the necessary mechanisms regarding data protection so that when data is processed by third parties for the provision of, whether called an educational platform service through a software application, educational solution, or digital platform, the regulations that outline their obligations contained in Article 28 of the GDPR are complied with, which in this specific case are enumerated as follows:

- “1. When processing is to be carried out on behalf of a data controller, the controller shall choose only a processor that offers sufficient guarantees to implement appropriate technical and organizational measures, so that the processing will be in compliance with the requirements of this Regulation and will ensure the protection of the rights of the data subject.
2. The processor shall not engage another processor without the prior written authorization, specific or general, of the controller. In the latter case, the processor shall inform the controller of any intended changes concerning the addition or replacement of other processors, thereby giving the controller the opportunity to object to such changes.
3. The processing by the processor shall be governed by a contract or other legal act under Union or Member State law, which binds the processor to the controller and establishes the subject matter, duration, nature, and purpose of the processing, the type of personal data and categories of data subjects, and the obligations and rights of the controller. Such contract or legal act shall stipulate, in particular, that the processor:
 - a) shall process the personal data only on documented instructions from the controller.”

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responsible, including with respect to the transfers of personal data to a third country or an international organization, unless required to do so under Union law or the applicable law of the Member States to which the processor is subject; in such case, the processor shall inform the controller of that legal requirement prior to processing, unless such law prohibits it for important reasons of public interest;

- b) shall ensure that persons authorized to process personal data have committed to respecting confidentiality or are under a statutory obligation of confidentiality;
- c) shall take all necessary measures in accordance with Article 32;
- d) shall respect the conditions set out in paragraphs 2 and 4 for engaging another processor;
- e) shall assist the controller, taking into account the nature of the processing, through appropriate technical and organizational measures, where possible, so that the controller can comply with its

obligation to respond to requests concerning the exercise of the rights of data subjects as established in Chapter III;

f) shall help the controller ensure compliance with the obligations set out in Articles 32 to 36, taking into account the nature of the processing and the information available to the processor;

g) at the choice of the controller, shall delete or return all personal data once the provision of processing services has ended, and shall delete existing copies unless Union law or the law of the Member States requires the retention of personal data;

h) shall make available to the controller all necessary information to demonstrate compliance with the obligations set out in this article, as well as to enable and contribute to audits, including inspections, by the controller or another auditor authorized by the controller.

In relation to the provisions of letter h) of the first paragraph, the processor shall immediately inform the controller if, in its opinion, an instruction infringes this Regulation or other provisions regarding data protection of the Union or the Member States.

9. The contract or other legal act referred to in paragraphs 3 and 4 shall be in writing, including in electronic format.

Adding in the "processing under the authority of the controller or the processor" (Article 29):

"The processor and any person acting under the authority of the controller or the processor and having access to personal data may only process such data following the instructions of the controller, unless required to do so under Union law or the law of the Member States."

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It follows that individuals who have access to personal data in their capacity as employees of the educational center are not considered processors.

The transmission of data for the implementation of the digital solutions GW at the School, in this case by the School's management to GOOGLE, constitutes a processing assignment, as it decides the purpose of processing the data of students and/or teachers, the purposes for which they will be used, and chooses the means.

Regardless of the assessment of the proportionality or necessity that the School claims to have undertaken through the report of the consultancy ADAPTALIA on 01/01/2022, which is conducted once the tool is operational, when it should have been carried out beforehand, this analysis is only part of the forecast for establishing the aforementioned processing, without implying compliance with the execution of the processing assignment contract.

Finally, it should be noted that this report is different from the one conducted on 13/08/2021 with the same entity, titled "RGPD-LOPDGDD audit report."

This stance, in order to be effectively materialized, requires signing a processing assignment contract of this type, in which the legal positions and conditions of the processing are stated, which has not been provided by the respondent, and which, even if signed online, should have a copy in the possession of the management, as well as any subsequent modifications thereof.

Furthermore, in the present case, it is inferred that there has been a use of GW, which was implemented with some interruptions, although it is not evidenced that the contract or legal act dictated by Article 28 has been concluded by the data controller, or with its authorization, with the terms of the service provision signed by the Director of the School being unknown, but lacking the status of data controller, and without evidence of the participation of its controller.

This constitutes a violation of Article 28 by the data controller.

VI

Regarding the lack of information in the collection of data, the obligation is specified in Article 13 of the GDPR, which states:

"1. When personal data relating to a data subject is obtained from that data subject, the data controller shall provide the data subject with all the information indicated below at the time the data is obtained:

- a) the identity and contact details of the controller and, where applicable, of its representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) when the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or a third party;

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- e) the recipients or categories of recipients of the personal data, if applicable;
- f) if applicable, the intention of the data controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49, paragraph 1, second sentence, reference to the appropriate or suitable safeguards and the means to obtain a copy of these or the fact that they have been provided.

2. In addition to the information mentioned in paragraph 1, the data controller shall provide the data subject, at the time when the personal data are obtained, with the following information necessary to ensure fair and transparent data processing:

- a) the period for which the personal data will be retained or, when that is not possible, the criteria used to determine that period;
- b) the existence of the right to request from the data controller access to personal data concerning the data subject, and their rectification or erasure, or the restriction of processing, or to object to processing, as well as the right to data portability;
- c) when the processing is based on Article 6, paragraph 1, letter a), or Article 9, paragraph 2, letter a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of processing based on consent before its withdrawal;
- d) the right to lodge a complaint with a supervisory authority;
- e) whether the communication of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and has been informed of the possible consequences of not providing such data;
- f) the existence of automated decision-making, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

3. When the data controller intends to further process personal data for a purpose other than that for which they were collected, it shall provide the data subject, prior to such further processing, with information on that other purpose and any relevant additional information in accordance with paragraph 2.

4. The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information.

It should be noted that the information collected is intended within the framework of the annual enrollment process for the parents of minors, or their guardians, who are the ones formalizing the enrollment. Although initially it is not directed to them, they may also be recipients of the information. Therefore, it is particularly important to emphasize the use of brief notices with simple, intelligible, concise, and didactic language that is easy to understand (consideration 58 of the GDPR).

In all processing that the School carries out, maximum transparency must be applied, so that individuals are aware at all times of the use being made of their data. Likewise, when changes are made to the data processing, they will be communicated to the interested parties and must explain how they will be affected.

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In this case, the data of students and teachers are combined to create an electronic address with which the GW service is provided, on which the data and information of its holders are associated for the performance of educational purposes.

After receiving the initiation agreement, the respondent provided the correction of the clause specifically identifying the data controller. This represents a more appropriate action than attempting to identify the data controller using information from the corporate website and accessing the RAT, as this is not a straightforward method for minors. Likewise, the fact that the information is offered on the corporate website cannot evade the requirement that the information to be provided to the affected party when collecting the data must be in accordance with Article 13 of the GDPR: "When personal data relating to him or her is obtained from a data subject, the data controller, at the time of obtaining these data... shall provide all the information indicated below:

a) the identity and contact details of the controller and, where applicable, of its representative;"

As in this case, data is generally collected at the beginning of the school year due to enrollment.

Furthermore, care must be taken to ensure that this information about the controller is consistent with that which appears in the RAT.

Without the purpose of this procedure being the analysis of the bases of legitimacy of the various treatments carried out at the School, the respondent framed all purposes as educational functions before the proposal for resolution, and all of them are governed by the same legitimizing basis, Article 6.1(c) of the GDPR.

Without prejudice to the fact that aspects such as the academic record and history, for example, appear ordered in different regulations (for example, Royal Decree 157/2022 of 1/03, which establishes the organization of the minimum teachings of Primary Education) and the aforementioned Article 6.1(c) would apply.

The enrollment process, being a private center, could be considered to derive from the contractual relationship that the parties will maintain, its development, and compliance. All this, without forgetting the legitimizing basis of Article 6.1(e) of the GDPR.

Article 8 of the LOPDGDD states:

1. The processing of personal data may only be considered based on the fulfillment of a legal obligation enforceable against the controller, in the terms provided in Article 6.1(c) of Regulation (EU) 2016/679, when such is provided for by a Union law or a law of equivalent rank, which may determine the general conditions of processing and the types of data subject to it as well as the transfers that may occur as a consequence of the fulfillment of the legal obligation. Such a norm may also impose special conditions on the processing, such as the adoption of additional security measures or others established in Chapter IV of Regulation (EU) 2016/679.

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2. The processing of personal data may only be considered based on the fulfillment of a mission carried out in the public interest or in the exercise of public powers conferred to the controller, as provided in Article 6.1 e) of Regulation (EU) 2016/679, when it derives from a competence attributed by a norm with the rank of law."

In summary,

a) The obligation must be provided for in the law that must meet all relevant conditions for the obligation to be valid and binding, and must also comply with data protection legislation, including the requirements of necessity, proportionality, and purpose limitation.

b) Furthermore, the legal obligation itself must be sufficiently clear regarding the processing of personal data that is required. Therefore, it is applicable based on the legal provisions that explicitly refer to the nature and purpose of the processing. The data controller should not have an undue degree of discretion regarding how to comply with such legal obligation.

Thus, not all purposes described in the “data protection information clause and consent” can be considered as compliance with a legal obligation as noted before the proposal for resolution, as the legitimizing bases for processing have been better aligned with the different purposes pursued. On the other hand, it was observed that the RAT contained information that differed from that in the “data protection information clause and consent” form, with the example being the response to the complainant's claim on 2/08/2021 regarding the legitimizing basis for processing data on the platform for educational purposes, based on a mission of public interest, which did not align with that contained in the aforementioned “data protection information clause and consent.” Following the proposal, the information clause has been updated to include the mission in the public interest as a legitimizing basis and to redefine the rest of the bases according to the purposes.

Additionally, the option to withdraw consent and its effects on the processing that adheres to that legitimizing basis was introduced, considering that it should be as easy to withdraw consent as it is to give it.

Notwithstanding the measures adopted, it is considered that the respondent infringed the aforementioned Article 13 of the GDPR.

VII

The GDPR typifies the infringement of Article 13 of the GDPR in Article 83.5.b) of the GDPR, which states: “Infringements of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to up to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

“b) the rights of data subjects under Articles 12 to 22.”

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The infringement of Article 28 of the GDPR is found in Article 83.4 a) of the GDPR, which indicates: “Violations of the following provisions shall be subject to administrative fines of up to 10,000,000 EUR or, in the case of an undertaking, an amount equivalent to up to 2% of the total annual global turnover of the preceding financial year, opting for the higher amount:

a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43;”

Article 83.7 of the GDPR states:

“Without prejudice to the corrective powers of supervisory authorities under Article 58, paragraph 2, each Member State may establish rules on whether and to what extent administrative fines may be imposed on authorities and public bodies established in that Member State.”

Article 77 of the LOPDGDD: “Applicable regime for certain categories of controllers or processors,” states:

1. The regime established in this article shall apply to the processing for which they are responsible or processors:

a) The constitutional bodies or those with constitutional relevance and the institutions of the autonomous communities analogous to them.

b) The judicial bodies.

c) The General Administration of the State, the administrations of the autonomous communities, and the entities that make up the Local Administration.

2. When the controllers or processors listed in paragraph 1 commit any of the infringements referred to in Articles 72 to 74 of this organic law, the competent data protection authority shall issue a resolution sanctioning them with a warning. The resolution shall also establish the measures that should be adopted to cease the conduct or correct the effects of the infringement that has been committed.

The resolution shall be notified to the controller or processor, to the body to which they hierarchically depend, if applicable, and to the affected parties who had the status of data subjects, if applicable.

3. Without prejudice to the provisions of the previous paragraph, the data protection authority shall also propose the initiation of disciplinary proceedings when there are sufficient indications for it. In this

case, the procedure and the sanctions to be applied shall be those established in the legislation on the disciplinary or sanctioning regime that is applicable.

Furthermore, when the infringements are attributable to authorities and executives, and the existence of technical reports or recommendations for processing that had not been accredited is demonstrated...

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If duly addressed, the resolution imposing the sanction shall include a warning with the designation of the responsible position and shall order publication in the Official State Gazette or the corresponding regional gazette.

4. The resolutions related to the measures and actions referred to in the previous sections shall be communicated to the data protection authority.

5. The actions taken and the resolutions issued under this article shall be communicated to the Ombudsman or, where applicable, to the analogous institutions of the autonomous communities.

6. When the competent authority is the Spanish Agency for Data Protection, it shall publish on its website, with due separation, the resolutions related to the entities mentioned in section 1 of this article, with express indication of the identity of the responsible party or data processor who committed the infringement."

The Order DEF/1876/2009, of 8/07, which approves the Regulation of the Orphans' Board of the Air Force "Our Lady of Loreto," states that it is a particular charitable association, attached to the Ministry of Defense, and its "purpose is to attend to the education and support of the orphans of its members, assisting them in their needs in the manner and extent determined in this regulation, to achieve a career or the learning of a trade or profession, according to their intellectual conditions and personal circumstances, to the extent that economic resources allow." (art 1). (...)

The CMNSL is attached to the Ministry of Defense through the aforementioned Board.

Since the person holding the position or title of "****POSITION.1." is responsible for the processing, it is deemed appropriate that the sanction to be imposed be a warning.

VIII

The classification of infringements for the purposes of prescription is contained in Article 71 of the LOPDGDD, which states:

"Acts and behaviors referred to in sections 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 constitute infringements, as well as those that are contrary to this organic law."

Article 73 of the GDPR:

"Based on what is established in Article 83.4 of Regulation (EU) 2016/679, the following shall be considered serious and shall be subject to a two-year statute of limitations: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:"

k) Entrusting the processing of data to a third party without the prior formalization of a contract or other written legal act with the content required by Article 28.3 of Regulation (EU) 2016/679.

Article 74 of the LOPDGDD states:

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"Minor infractions of a merely formal nature mentioned in paragraphs 4 and 5 of Article 83 of Regulation (EU) 2016/679 shall be considered minor and shall prescribe after one year, particularly the following:

"a) The failure to comply with the principle of transparency of information or the right to information of the affected party by not providing all the information required by Articles 13 and 14 of Regulation (EU) 2016/679."

The respondent requests in their allegations to the proposal that, since the application has not been used since May 2022 (before the initiation agreement), based on the circumstances that led to its use, the lack of consequences, and having remedied the deficiencies, the infringement of Article 28 of the GDPR should not be sanctioned.

In this regard, the infringement of Article 28 would be a substantial violation of the regulations and the guarantees of data processing that affected the entire structure of the College in its various ages, students, and teachers who, without a processing assignment, lack legitimate grounds for their processing. On the other hand, the consequences are the violation of the fundamental right in the processing of the data of its holders, which objectively represents a significant and very important relevance in the management of the data of minors entrusted to the CMNSL, making it impossible to archive the infringements.

IX

Regarding the provisional measures to guarantee the fundamental right, with the precautionary blocking of the data requested by the claimant, the LOPDGDD establishes in its Article 69:

1. During the preliminary investigation proceedings or the initiation of a procedure for the exercise of the sanctioning power, the Spanish Agency for Data Protection may, for justified reasons, agree to the necessary and proportionate provisional measures to safeguard the fundamental right to data protection and, in particular, those provided for in Article 66.1 of Regulation (EU) 2016/679, the precautionary blocking of data, and the immediate obligation to comply with the requested right.
2. In cases where the Spanish Agency for Data Protection considers that the continuation of the processing of personal data, its communication, or international transfer would result in a serious detriment to the right to personal data protection, it may order the controllers or processors of the treatments to block the data and cease their processing, and in case of non-compliance with these mandates, proceed to immobilization.
3. When a complaint has been submitted to the Spanish Agency for Data Protection referring, among other issues, to the failure to timely address the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, the Spanish Agency for Data Protection may agree at any time, even prior to the initiation of the procedure for the exercise of the sanctioning power, through a reasoned resolution and after hearing the data controller, the obligation to address the requested right, continuing the procedure regarding the other issues subject to the complaint."

Firstly, regarding the statement that "health and religion data can be processed," it has not been substantiated; secondly, it should be noted that there could be a basis for legitimacy for the...

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treatment of the use of IT solutions in relation to the educational function, also outside the Agreement with the Community of Madrid.

Thirdly, the data of the claimant's children, name and surname, were associated with a GOOGLE email account, without any record of the user accepting its operation or it being activated, and finally, regarding the exercise of the right, a response was provided and addressed.

Finally, at the end of May 2022, it was stated that the use of the application was provisionally suspended and has not been used again.

When the initiation agreement was issued, there were no circumstances of sufficient substance to justify the suspension of the proposed data processing.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO SANCTION ***CARGO.1- COLEGIO MENOR NUESTRA SEÑORA DE LORETO

(MINISTRY OF DEFENSE, AIR AND SPACE FORCE) with NIF S2801407D, with a warning sanction for each of the infringements of the GDPR, of the articles:

- 28, in accordance with article 83.4 a) of the GDPR, classified as serious for prescription purposes in

article 73.k) of the LOPDGDD.

- 13, in accordance with article 83.5 b) of the GDPR, classified as minor for prescription purposes in article 74.a) of the LOPDGDD.

SECOND: NOTIFY this resolution to the MINISTRY OF DEFENSE, (AIR AND SPACE FORCE - ***CARGO.1- COLEGIO MENOR NUESTRA SEÑORA DE LORETO) with NIF S2801407D.

THIRD: COMMUNICATE this resolution to the OMBUDSMAN, in accordance with the provisions of article 77.5 of the LOPDGDD.

FOURTH: In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with art. 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of 13/07, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law.

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Finally, it is noted that in accordance with the provisions of art. 90.3 a) of the LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

938-010623

Mar España Martí

Director of the Spanish Agency for Data Protection

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